

STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS
DEPARTMENT OF REGULATORY AGENCIES
STATE OF COLORADO

Case No. 2016-4468
OAC Case No. PCE 2017-0002

IN THE MATTER OF THE PROCEEDING REGARDING LAUREN VAN DORN,
CASE NUMBER 2016-4468,

Respondent.

BOARD ORDER AND FINAL AGENCY ACTION

This matter is before the State Board of Licensed Professional Counselor Examiners (LPC Board) on exceptions to the “Third Initial Decision” of Administrative Law Judge Matthew Norwood (ALJ), dated January 31, 2020. Having reviewed the administrative record and being fully informed in the facts and premises, the LPC Board now enters this Board Order and Final Agency Action (Third Board Order).

BACKGROUND

Mental health professionals are regulated and subject to discipline by the Mental Health Practices Act (MHPA), §§ 12-245-101, *et seq.* An individual may hold one or more mental health licenses, certifications, and registrations. Each license is subject to regulation by a different statutorily created mental health board.

In 2019, the Colorado General Assembly repealed and reenacted the MHPA. The repeal and reenactment resulted in the addition, relocation, and elimination of certain sections, as well as subject matter. The events that led to the administrative

case against the Respondent occurred before the repeal, reenactment, and recodification of the statute. This Third Board Order will cite to existing citation of the statute at the time of the violation with footnote references to the current citation.

Respondent Lauren Van Dorn (Van Dorn) was registered as a psychotherapist (RP), registration number 11385, on August 20, 2009 and licensed as a professional counselor (LPC), license number LPC 12425, on April 28, 2015. Her registration to practice as a RP expired on August 31, 2015.

On August 12, 2016, after her registration as a psychotherapist had expired, but while her license as a professional counselor was active, Van Dorn entered into a “Stipulation and Final Agency Order” with the Board of Registered Psychotherapists (RP Board) (2016 Stipulation). In the 2016 Stipulation, Van Dorn admits to the following violations of the Colorado Revised Statutes:

- § 12-43-222(1)(g) Failing to meet generally accepted standards of the profession.¹
- § 12-43-222(1)(i) Maintaining a relationship with a client that is likely to impair professional judgment or increase the risk of client exploitation.²
- § 12-43-222(1)(k) Failing to terminate a relationship with a client when it was reasonably clear that the client was not benefitting from the relationship and is not likely to gain such benefit in the future.³

¹ Now codified at § 12-245-224(1)(g), C.R.S.

² Now codified at § 12-245-224(1)(i), C.R.S.

³ Now codified at § 12-245-224(1)(k), C.R.S.

In the same Stipulation, Van Dorn agrees that, if she reinstates her psychotherapist registration, she will serve one-year of probation, with a practice monitor, and complete 30 hours of continuing education.

I. Procedural history leading to first remand and First Board Order

On September 8, 2016, the Board of Licensed Professional Counselor Examiners (LPC Board, or Petitioner) opened a complaint against Van Dorn based on the 2016 Stipulation. On May 10, 2017, Petitioner filed a “Notice of Duty to Answer, Notice to Set, Notice of Hearing, and Notice of Charges” (Notice) with the Office of Administrative Courts. In the Notice, Petitioner alleges that the 2016 Stipulation is prima facie evidence of grounds for discipline by the LPC Board pursuant to section 12-43-222(2), C.R.S. and requests revocation of Van Dorn’s professional counselor license.⁴

On June 9, 2017, Van Dorn filed an answer to the Notice and simultaneously moved to dismiss the matter pursuant C.R.C.P. 12(b)(5), arguing that section 12-43-222(2), C.R.S. only applies to discipline imposed by a jurisdiction outside of Colorado, and not the discipline imposed by the RP Board in the 2016 Stipulation.

⁴Now codified at § 12-245-224(2), C.R.S. (2019). At the time the Petitioner brought the charges in the Notice, section 12-43-222(2), C.R.S. provided:

A disciplinary action relating to a license, registration, or certification to practice a profession licensed, registered, or certified under this article or any related occupation in any other state, territory, or country for disciplinary reasons constitutes prima facie evidence of grounds for disciplinary action, including denial of licensure, registration, or certification, by a board. This subsection (2) applies only to disciplinary actions based upon acts or omissions in such other state, territory, or country substantially similar to those acts or omissions set out as grounds for disciplinary action pursuant to subsection (1) of this section. § 12-43-222(2), C.R.S. (2017).

On June 23, 2017, ALJ Hollyce Farrell, the administrative law judge originally assigned to this matter, denied Van Dorn's motion, finding that her interpretation of section 12-43-222(2), C.R.S. is contrary to the intent of the MHPA because the MHPA applies to both RPs and LPCs, and Van Dorn's statutory interpretation "would allow a licensee disciplined by one Colorado mental health board to circumvent that discipline by simply allowing their license/registration/certification to expire, and then applying for a different license/registration/certification."

On August 2, 2017, Petitioner moved for summary judgment, arguing that the 2016 Stipulation constituted prima facie evidence of grounds for discipline by the LPC Board pursuant to section 12-43-222(2), C.R.S. Van Dorn filed a response on August 10, 2017, disputing the allegations and arguing that the practice monitoring and therapy she completed for a prior agreement with the Sex Offender Management Board (SOM Board), based on the same conduct at issue in the 2016 Stipulation, should satisfy the requirements of the 2016 Stipulation. Petitioner filed a reply on August 14, 2017, arguing that Van Dorn had admitted to violating the MHPA, that the LPC Board is entitled to seek discipline under the applicable statute, and that whatever practice monitoring and therapy that Van Dorn previously completed did not satisfy the requirements of the 2016 Stipulation.

At some point during the procedural history, the case was assigned to Administrative Law Judge Matthew Norwood (ALJ Norwood or ALJ). On September 8, 2017, ALJ Norwood entered his "Order Denying Motion for Summary Judgment, Granting Motion to Dismiss and Initial Decision." The Order, issued sua

sponte, revisits and grants the motion to dismiss that was previously denied by the prior administrative law judge, ALJ Farrell. ALJ Norwood found that section 12-43-222(2) only applies to discipline imposed in jurisdictions outside of Colorado, and that any other interpretation would be “ungrammatical and erroneous.” ALJ Norwood dismissed petitioner’s Notice, concluding that the claim under section 12-43-222(2), C.R.S. “fails to state a claim per C.R.C.P. 12(b)(5).”

On November 10, 2017, Petitioner filed its first of three exceptions in this matter, asking the LPC Board to: (i) reverse the ALJ’s dismissal; (ii) grant summary judgment in Petitioner’s favor; and (iii) impose discipline on Van Dorn identical to that imposed in the 2016 Stipulation. Van Dorn filed a response to the exceptions on November 20, 2017, and the LPC Board considered the matter at its regularly scheduled meeting on January 5, 2018.

The LPC Board issued its Board Order on August 15, 2018 (First Board Order), a copy of which is attached as **Appendix A**. The LPC Board incorporates the First Board Order into this Third Board Order by reference as if fully set forth herein. The First Board Order concluded that the MHPA “authorized each mental health board to rely on the discipline imposed by its sister boards in determining whether it should also impose discipline.” It held that pursuant to the “clear and unambiguous” language of the MHPA, specifically section 12-43-224(1)(b), C.R.S.,⁵ Van Dorn is subject to discipline by the RP Board and the LPC Board for violations of sections 12-43-222(1)(g), 1(i), and 1(k), C.R.S. Section 12-43-224(1)(b) provides:

⁵ Now codified at § 12-245-226(1)(b), C.R.S.

A license, registrant, or certificate holder who holds more than one license, registration, or certification pursuant to this article, who has committed any act or failed to act pursuant to the grounds established in section 12-43-222 or 12-43-226, is subject to disciplinary action by all boards that license, register, or certify the person pursuant to this article. The findings, conclusions, and final agency order of the first board to take disciplinary action pursuant to this section against the licensee, registrant, or certificate holder . . . is prima facie evidence against the person in any subsequent disciplinary action taken by another board concerning the same act or series of acts.

§ 12-43-224(1)(b), C.R.S. (2017). The LPC Board explained that sections 12-43-222(2) and 12-43-224(1)(b), C.R.S. provide evidentiary presumptions on which a mental health board may rely when disciplining a licensee, registrant, or certificate holder based on prior discipline, while the substantive grounds for disciplining Van Dorn are contained in sections 12-43-222(1)(g), (1)(i), and (1)(k).

The LPC Board concluded that Petitioner may rely on the 2016 Stipulation to impose discipline on Van Dorn under section 12-43-222(2), C.R.S. or section 12-43-224(1)(b), C.R.S., depending on which applies to the circumstances of this case and as decided by the ALJ. The LPC Board also concluded that the ALJ improperly dismissed the notice pursuant to C.R.C.P. 12(b)(5) because the factual allegations support discipline of Van Dorn under sections 12-43-222(1)(g), (1)(i), and (1)(k), C.R.S. The LPC Board remanded the matter to the OAC and instructed the ALJ to make findings about whether the requirements in the SOM Board stipulation could satisfy the agreement with the RP Board.

II. Procedural history leading to second remand and Second Board Order

On remand, the Petitioner requested a setting conference, and the ALJ reset the case for hearing on May 15 and 16, 2019. Petitioner filed a renewed dispositive motion on December 19, 2018. It reasserted the same arguments as the original motion and argued that the First Board Order constitutes the “law of the case,” that the LPC Board can discipline Van Dorn pursuant to sections 12-43-222(2) and 12-43-224(1)(b), C.R.S., and requested that the ALJ impose the same discipline as in the 2016 Stipulation – one year of probation, with a practice monitor, and 30 hours of continuing education.

On January 17, 2019, the ALJ denied the Petitioner’s renewed dispositive motion, restating his basis for dismissing the matter in the first Initial Decision – that the LPC Board lacks authority to discipline Van Dorn under section 12-43-222(2)⁶, based on the 2016 Stipulation, because the statute only applies to out-of-state discipline. The ALJ disagreed with the LPC Board’s legal analysis in the First Board Order, its remand of the case, and the LPC Board’s contention that Van Dorn is subject to discipline pursuant to sections 12-43-224(1)(b), (i), and (k), C.R.S. because Petitioner had not specifically pleaded these claims.⁷

On April 2, 2019, Van Dorn filed a Motion for Judgment on the Pleadings, or in the Alternative, Motion for Summary Judgment, requesting that the ALJ dismiss the matter pursuant to his Order Denying Motion for Summary Judgment.

⁶ Now codified at § 12-245-224(2), C.R.S.

⁷ The ALJ’s conclusion is curious because the First Board Order does not contain an allegation or analysis of the subsections to which he cites, 12-43-224(1)(i) and (k), C.R.S. More importantly, these subsections of the statute at the time do not exist.

The ALJ issued an “Initial Decision” on April 15, 2019, incorporating his previous orders and granting Van Dorn’s motion. The ALJ noted that, “[n]othing had changed,” since granting Van Dorn’s motion to dismiss in the first Initial Decision and that, as a matter of law, the LPC Board did not have the authority to discipline Van Dorn under section 12-43-222(2) because the statute only applies to disciplinary actions taken outside of Colorado. The ALJ repeated his assertion that, contrary to the First Board Order remanding the case, Petitioner did not have the authority to sanction Van Dorn pursuant to sections 12-43-224(1)(b), (i), and (k), C.R.S. because Petitioner had made no allegation relying on these subsections and had not moved to amend the notice of charges.⁸ The ALJ dismissed the Petitioner’s Notice and vacated the May hearing dates.

The Petitioner filed its second of three exceptions in this matter on May 22, 2019, asking for the LPC Board to: (i) reverse the ALJ’s dismissal; (ii) hold that section 12-43-222(2) provides a basis for discipline by a Colorado mental health board as the result of discipline imposed by another board; (iii) grant the Petitioner’s renewed dispositive motion; and, (iv) impose the same discipline on Van Dorn as imposed by the RP Board in the 2016 Stipulation. The parties briefed the case, and Van Dorn filed a response on June 4, 2019. The LPC Board considered the matter at its regularly scheduled meeting on July 12, 2019.

⁸ The LPC Board, again, questiones the ALJ Norwood’s comment because the Board Order contains no allegation regarding two of the cited subsections, 12-43-224(1)(i) and (k), and moreover, those subsections do not exist.

The LPC Board issued its Second Board Order for this matter on August 7, 2019 (Second Board Order), a copy of which is attached as **Appendix B**. The LPC Board incorporates the Second Board Order into this Third Board Order by reference as if fully set forth herein.

As a preliminary matter, the LPC Board held that administrative agencies have plenary authority to review the decisions of administrative law judges and modify or reverse them if erroneous. *Wecker v. TBL Excavating, Inc.* 908 P.2d 1186, 1188 (Colo. App. 1995) (citing *Dir. v. Consolidation Coal Co.*, 884 F.2d 926, 929 (6th Cir. 1989)). An agency has the authority in a review proceeding to remand the case to the ALJ for further proceedings, and it may direct, or affirm, set aside, or modify the order of an ALJ, or any sanction or relief entered therein, in conformity with the facts and the law. § 24-4-105(15)(b), C.R.S.

The Second Board Order noted that an administrative agency may alter the ALJ's ultimate conclusions. § 24-4-105(15)(b), C.R.S. "It is commonly recognized that ALJs are entirely subject to the agency on matters of law." *Iran Air v. Kugelman*, 996 F.2d 1253, 1260 (D.D.C. 1993) (Ginsburg, J.) (quoting Antonin Scalia, *The ALJ Fiasco – A Reprise*, 47 U. CHI. L. REV. 57, 62 (1979) (internal quotation marks omitted)). An agency may substitute its judgment for that of the ALJ as to the ultimate conclusions if the findings have a reasonable basis in law and are supported by substantial evidence in the record. *Colo. State Bd. of Dental Exam'rs v. Major*, 996 P.2d 246, 248 (Colo. App. 1999). An agency's interpretation of the statute it must enforce is entitled to great deference and must be accepted if it

has a reasonable basis in law and is warranted by the record. *Reiff v. Colo. Dep't. of Health Care Policy & Fin.*, 148 P.3d 355, 358 (Colo. App. 2006).

The LPC Board held that the legal conclusions in the First Board Order were binding on the ALJ. It notes that the ALJ glosses over the LPC Board's conclusion that Petitioner may rely on section 12-43-224(1)(b), C.R.S. as an evidentiary presumption in disciplining Van Dorn based on the admissions in the 2016 Stipulation. The ALJ incorrectly interprets the First Board Order as invoking sections 12-43-224(1)(b), (i), and (k) as the grounds for disciplining Van Dorn. The Second Board Order, however, does not contain allegations regarding subsections 12-43-224(1)(i) or (k) because they do not exist.

The Second Board Order emphasizes that section 12-43-224(1)(b), as with section 12-43-222(2), does not set forth the substantive bases for disciplining Van Dorn. It provides an evidentiary presumption based on prior discipline, which is not of consequence when considering a motion under C.R.C.P. 12. *Rosenthal v. Dean Witter Reynolds, Inc.*, 908 P.2d 1095, 1103 (Colo. 1995) (holding that "[i]t is not necessary to plead [evidentiary presumptions] or even to plead facts that would support such theories in a complaint").

Moreover, the LPC Board concluded that the substantive grounds for disciplining Van Dorn are contained in sections 12-43-222(1)(g), (1)(i), and (1)(k), the provisions of the MHPA to which Van Dorn already admitted to violating in the 2016 Stipulation. The LPC Board concluded that when asserting the substantive bases for discipline in the Notice of Charges, which expressly quotes sections 12-43-

222(1)(g), 1(i), and (1)(k), C.R.S., the Petitioner, therefore, properly asserted the allegations under sections 12-43-222(1)(g), (1)(i), and (1)(k) in the Notice.

The LPC Board vacated the April 15, 2019 Initial Decision and remanded the case to the Office of Administrative Courts for further proceedings to evaluate the appropriate discipline at a sanctions hearing and whether the practice monitoring and therapy completed by Van Dorn before she entered into the 2016 Stipulation could satisfy the subsequent agreement.

III. Procedural history leading to instant proceeding and Third Board Order

After the remand of the case, the parties made filings with both the Office of Administrative Courts and the Colorado Court of Appeals.

Van Dorn filed a Notice of Appeal of the Second Board Order on September 6, 2019. The Petitioner filed a motion to dismiss the appeal with the Colorado Court of Appeals on September 25, 2020, claiming that the Second Board Order did not constitute a Final Agency Action and was not yet ripe for appeal. Van Dorn filed a response on October 1, 2019. A panel of the Colorado Court of Appeals granted the Petitioner's Motion to Dismiss on October 7, 2019 and dismissed the appeal without prejudice for lack of a final agency order.

In the administrative case, the Petitioner filed a Request for Case Management Conference on September 11, 2019. The parties participated in a setting conference, and the case was reset for a hearing on May 28 and 29, 2020.

Van Dorn filed a motion to stay the administrative case with the Office of Administrative Courts on September 20, 2019, pending the disposition of the appeal. The Petitioner filed a response in opposition on September 30, 2019.

On October 24, 2019, Petitioner filed a Second Renewed Motion for Summary Judgment requesting judgment as a matter of law in favor of the LPC Board on the following grounds: 1. That discipline by the LPC Board was proper pursuant to sections 12-245-224(2) and 12-245-226(1)(b), C.R.S. and 2. That a sanctions hearing should take place on January 13, 2020. Van Dorn filed a response in opposition on November 8, 2019, arguing, among other things, that any presumption raised under then section 12-43-224(1)(b), C.R.S. operated as a permissive presumption and that the Petitioner had waived the right to assert it. The Petitioner filed a reply on November 13, 2019, arguing that the prior board orders state that the LPC Board has the statutory authority to discipline Van Dorn and that Petitioner did not need to plead the substantive grounds for discipline in the Notice.

On November 8, 2019, Van Dorn filed a Motion for Partial Summary Judgment seeking an order finding that the evidentiary presumption in section 12-43-224(1)(b), C.R.S. is a permissive presumption and that because it is a permissive presumption, Petitioner had waived the right to assert it. The Petitioner filed a response on November 19, 2019, arguing that the ALJ is bound by the conclusions of law in the Second Board Order and that the only remaining issue to be tried is the appropriate discipline to be imposed on Van Dorn.

On November 25, 2019, the ALJ entered the Order Denying Board’s Motion for Summary Judgment and Also Denying Respondent’s Motion for Partial Summary Judgment.⁹ The ALJ summarized the procedural history and legal analysis in the prior two orders, confirming the correctness of his own legal analysis and rejecting the LPC Board’s analysis. The ALJ argued that he did not ignore sections 12-43-224(1)(b) and 12-43-222(1)(g), (1)(i), and (1)(k), C.R.S. as concluded by the Second Board Order, because “[o]nly Section 12-43-222(2) had been charged.” The ALJ provided no other analysis, other than these conclusory sentences, to explain the legal basis for requiring the Petitioner to re-plead and re-prove sections 12-43-222(1)(g), (1)(i), and (1)(k), C.R.S. if Van Dorn had already admitted to violating them in the prior 2016 Stipulation. The Order, again, concluded, that Van Dorn cannot be disciplined under section 12-43-222(2), C.R.S. and denied the Petitioner’s motion.

The Order then addressed Van Dorn’s motion and concluded that section 12-43-224(1)(b) “is not significant to this case” because Van Dorn stipulated to violating sections 12-43-222(1)(g), (1)(i), and (1)(k), C.R.S. It then concluded that section 12-43-224(1)(b) only would apply to this case if the Petitioner had pleaded sections 12-43-222(1)(g), (1)(i), and (1)(k), C.R.S. in the Notice. Again, the ALJ did not provide any legal authority or other analysis to explain the reasoning why section 12-43-224(1)(b), C.R.S., which creates a statutory presumption, must be specifically

⁹ The Order cites to the repealed version of the MHPA. For the purposes of clarity, this section of the analysis uses the citations used by the ALJ, despite the fact the statute had been repealed, reenacted, and relocated.

pleaded by the parties for it to apply to the case. The ALJ denied Van Dorn's motion.

As part of the analysis, the ALJ found that even though Petitioner had not alleged claims pursuant to sections 12-43-222(1)(g), (1)(i), and (1)(k), C.R.S., "in order to avoid any more procedural problems, he will also make alternative findings of fact and conclusions of law. These will assume that Sections 12-43-222(1)(g), (1)(i), and (1)(k) were properly charged in the Notice of Charges." The case then proceeded to hearing using this unorthodox procedural structure.

The Petitioner filed a Prehearing Statement on December 13, 2019. Van Dorn filed a Prehearing Statement on December 13, 2019. On December 27, 2019, Petitioner filed a Motion to Strike Respondent's Witnesses, alleging that Van Dorn was attempting to put on improper character witness testimony at the hearing. Van Dorn filed a response on December 31, 2019, denying the allegations. The ALJ issued an order on January 9, 2020, denying both motions.

The case went to a one-day hearing on January 13, 2020. Each party put on evidence in the form of witnesses and documents. The ALJ issued the Third Initial Decision on January 31, 2020 (Third Initial Decision), in which he explained that he tried the case based on a "hypothetical situation" that assumed that the Petitioner had pleaded claims pursuant to sections 12-43-222(1)(g), (1)(i), and (1)(k)¹⁰, C.R.S. in the Notice.

¹⁰ At the time of the Third Initial Decision entered the General Assembly had repealed, reenacted, and relocated MHPA. The ALJ, however, cites to the repealed version of the statute. For the purposes of clarity, the Third Board Order will use the citations actually used by the ALJ's analysis, despite the fact they refer to the repealed statute.

The ALJ, then, made what the LPC Board assumes were “hypothetical” evidentiary findings of fact based on the “hypothetical situation,” or procedural structure, under which the case was tried. The ALJ concluded that had the Petitioner properly charged Van Dorn with “substantive” claims pursuant to sections 12-43-222(1)(g), (1)(i), and (1)(k), as opposed to the “non-substantive” claim under 12-43-222(2), C.R.S., he would have imposed discipline on Van Dorn, which would have included “eight additional hours of continuing education approved by the PCE Board in the hypothetical one-year probationary ordered.” The ALJ ultimately concluded, however, that he could not impose discipline on Van Dorn because section 12-43-222(2), C.R.S. did not apply to this case.

The ALJ again, and incorrectly, disagreed with the LPC Board’s legal interpretation of section 12-43-222(2), C.R.S. and concluded that it does not apply to this case because it only applies to out-of-state discipline, not to discipline in Colorado imposed by a sister board under the MHPA. The ALJ also found that he could not impose discipline on Van Dorn under section 12-43-224(1)(b), C.R.S. because it did not apply to this case, is not a substantive basis to impose discipline, and was not pleaded. The ALJ concluded that because Petitioner had not independently pleaded claims pursuant to sections 12-43-222(1)(g), (1)(i), and (1)(k), C.R.S., he could not impose any discipline. The ALJ imposed no sanctions on Van Dorn.

Petitioner designated the record on March 2, 2020 and supplemented the designation on March 31, 2020. It requested the hearing transcript from OAC on

February 25, 2020 and filed an updated request on March 17, 2020. The LPC Board issued a procedural order for review of the Third Initial Decision on February 11, 2020 setting forth the procedural deadlines for the briefing of the exceptions. The Petitioner filed its exceptions brief on April 15, 2020. Van Dorn filed her response brief on May 11, 2020. The Petitioner filed a reply brief on May 15, 2020. The LPC Board considered the matter at its regularly scheduled meeting on July 10, 2020.

STANDARD OF REVIEW

Administrative agencies have plenary authority to review the decisions of administrative law judges and modify or reverse them if they are erroneous. *See Wecker v. TBL Excavating, Inc.*, 908 P.2d 1186, 1188 (Colo. App. 1995) (citing *Dir. v. Consolidation Coal Co.*, 884 F.2d 926, 929 (6th Cir. 1989) (holding that on questions of law, the LPC Board has “plenary authority to review the conclusions of the ALJ and reverse them if convinced they are erroneous.”) An agency may review an administrative order and remand the case to the ALJ for further proceedings at its direction, or affirm, set aside, or modify it, or any sanction or relief therein, to conform with the facts and law. § 24-4-105(15)(b), C.R.S.

While findings of evidentiary fact may not be altered if supported by the evidence, an agency is not bound by the ALJ’s ultimate conclusions. § 24-4-105(15)(b), C.R.S. “It is commonly recognized that ALJs are entirely subject to the agency on matters of law.” *Iran Air v. Kugelman*, 996 F.2d 1253, 1260 (D.D.C. 1993) (Ginsburg, J. (quoting Antonin Scalia, *The ALJ Fiasco – A Reprise*, 47 U. Chi. L. Rev. 57, 62 (1979) (internal quotations marks omitted)). An agency may substitute

its judgment for that of the ALJ with respect to ultimate conclusions, so long as the agency's findings have a reasonable basis in law and are supported by substantial evidence in the record. *Colo. State Bd. of Dental Exam'rs. v. Major*, 996 P.2d 246, 248 (Colo. App. 1999). Ultimate findings of fact "involve a conclusion of law, or at least a mixed question of law and fact, and settle the rights and liabilities of the parties." *See State Bd. Of Medical Exam'rs. v. McCroskey*, 880 P.2d 1188, 1193 (Colo. 1994).

An agency's interpretation of its statute is entitled to great deference and must be accepted if it has reasonable basis in law and is warranted by the record. *Reiff v. Colo. Dep't. of Health Care Policy & Fin.*, 148 P.3d 355, 358 (Colo. App. 2006). "An agency has dominant authority to resolve statutory interpretation within the agency and its interpretations are binding on others in the adjudicative hierarchy." 32 Charles Alan Wright & Charles H. Koch, Jr., *Fed. Practice & Procedure* § 8216. *See also Iran Air*, 996 F.2d at 1261-62 (requiring the ALJ to follow the agency's interpretation of law on remand as the "law of the case."). "There is no dispute that a lower court must follow the law of the case as laid out by an appellate tribunal." *Thompson v. Catlin Ins. Co. (UK) Ltd.*, 431 P.3d 224, 228 (Colo. 2018).

ANALYSIS

Section 12-245-224(2), C.R.S. is clear and unambiguous. It applies to discipline imposed against licenses issued by a Colorado MHPA board, as well as to discipline imposed by other jurisdictions. Section 12-245-226(1)(b) provides that

licensees who hold more than one license under the MHPA are subject to discipline by all boards that have issued licenses. Both sections operate as evidentiary presumptions based on prior discipline by the RP Board.

Although neither statute sets forth the substantive grounds for disciplining Van Dorn, Van Dorn has admitted, repeatedly, to violating sections 12-245-224(1)(g), (1)(i), and (1)(k). Van Dorn's admissions operate as prima facie evidence against her. § 24-4-105(7), C.R.S.; *see also Watson v. Merritt*, 149 Colo. 562, 565, 369 P.2d 989, 991 (1962) (holding that the rules of evidence in a worker compensation case are generally the same as a civil case); C.R.E. 801(d)(2).

Petitioner, therefore, did not need to plead the substantive violations, or amend the original Notice, because Van Dorn has already admitted them. *See Watson*, 149 Colo. At 565, 369 P.2d at 991 (holding that "[a]dmissions against interest justify the finder of the facts in considering as established the facts admitted.") (internal citations omitted). The ALJ has erred, again, in concluding that the Petitioner should have amended its Notice and replead the violations.

The Petitioner appropriately plead § 12-245-224(2) and relied on the admissions in the 2016 Stipulation to establish a prima facie case of the identical violations of sections 12-245-222(1)(g), (1)(i), and (1)(k), C.R.S. *See Watson, supra*, at 565 and 991 (holding that "[i]n the absence of opposing evidence their prima facie character remains undisturbed and intact."). The presumptions, which are rebuttable, then shift to Van Dorn to offer evidence to disprove them. Van Dorn,

however, could not put on any evidence to rebut the presumptions at hearing because she has admitted to the violations.

The LPC Board rejects the ALJ's legal conclusion that section 12-245-226(1)(b), C.R.S. does not apply to this case. Van Dorn holds two licenses, one issued by the RP Board, and a second issued by the LPC Board. The fact that RP license has expired is irrelevant; she still holds a license issued by the RP Board. The statute also very clearly provides that it applies to violations of sections 12-245-224 and 12-245-228, C.R.S. Van Dorn has admitted to violations of section 12-245-224, C.R.S., and therefore, she is subject to discipline pursuant to section 12-245-226(1)(b).

On remand, the task for the ALJ was to determine the nature of the discipline to be imposed on Van Dorn. While somewhat ambivalent about the weight he puts on the testimony and other evidence at the hearing, the ALJ ultimately concluded, hypothetically, that a sanction of eight continuing education hours, as well as one-year of probation and additional practice monitoring, constituted an appropriate sanction for Van Dorn.

The ALJ provides no additional legal justification not to follow the LPC Board's interpretation of its own organic statute. Nor does the ALJ provide legal authority or other argument supporting his conclusion that he is not bound by the prior board orders. The LPC Board maintains that its reading of the law is correct

and that the ALJ, again, has misinterpreted the applicable statutes that predicate the outcome of this case.

The LPC Board rejects the ALJ's interpretation of the MHPA, as well as his conclusion that he is not bound by its legal interpretation and conclusions in the previous Board Orders. *See* § 24-4-105(15)(b), C.R.S.; *Reiff, supra*, 148 P.3d 358.

CONCLUSION AND ORDER

For the reasons stated herein, the LPC Board issues the following order:

1. The LPC Board adopts and accepts the hypothetical Findings of Fact in the Third Initial Decision, with the exception of the following paragraphs:
 - a. The date in Paragraph 1 of the Third Initial Decision is corrected to reflect Van Dorn's correct date of licensure as a professional counselor, April 28, 2015;
 - b. The legal conclusion in Paragraph 8 is reversed;
 - c. The typographical errors in Paragraph 16 are corrected so that the language reads: "It is not on letterhead like her other reports in that it was prepared to respond to an email";
 - d. The language in Paragraph 21 is changed to state that Elizabeth Schmidt is licensed as a Licensed Professional Counselor (LPC) and a Licensed Addiction Counselor (LAC);
 - e. The legal conclusion in Paragraph 22 is reversed.
 - f. The legal conclusion in Paragraph 25 is reversed.

2. The LPC Board vacates the Conclusions of Law and overrules all legal conclusions contained therein;
3. The LPC Board amends the ALJ's recommended, and hypothetical, sanctions and imposes the same discipline on Lauren Van Dorn (LPC-0012425) as imposed by the RP Board in the 2016 Stipulation. The 2016 Stipulation is attached to this Third Board Order as **Attachment C**. All deadlines identified in the 2016 Stipulation shall begin to accrue within 30-days of the entry of the Third Board Order.
4. The LPC Board adopts its Third Board Order as the Final Agency Order.
5. The LPC Board delegates the authority to sign this order to Karen McGovern, Deputy Director of Legal Affairs.

DONE and ORDERED this 6th day of November, 2020.

FOR THE COLORADO STATE
BOARD OF LICENSED
PROFESSIONAL COUNSELOR
EXAMINERS



Karen M. McGovern,
Deputy Director of Legal Affairs

STATE OF COLORADO OFFICE OF ADMINISTRATIVE COURTS 1525 Sherman Street, 4th Floor, Denver, Colorado 80203	
STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS Petitioner, VS. LAUREN VAN DORN, Respondent.	▲ COURT USE ONLY ▲ CASE NUMBER: PCE 20170002
THIRD INITIAL DECISION	

This case is a disciplinary proceeding regarding the Respondent's license as a professional counselor. Such licenses are described at Section 12-245-202(6), C.R.S. Disciplinary proceedings are described at Sections 12-245-226 and 24-4-105, C.R.S. Hearing was held and recorded before Administrative Law Judge ("ALJ") Matthew E. Norwood on January 13, 2020 in courtroom 5 of the Office of Administrative Courts ("OAC").

At the hearing, Jodanna L. Haskins, Senior Assistant Attorney General, appeared for the Petitioner ("PCE Board"). Scott Gelman, Esq., appeared for the Respondent.

Summary

The Respondent had been a "registered psychotherapist" as this is described at Section 12-245-202(15). That registration expired August 31, 2015 and has been expired for all times relevant to this case. The Respondent and the State Board of Registered Psychotherapists ("RP Board") entered into a "Stipulation and Final Agency Order" ("Stipulation") effective August 12, 2016 regarding her expired registration. In the Stipulation, the Respondent admitted that she had engaged in the prohibited activities set out in what is now Sections 12-245-224(1)(g), (i) and (k). (Referenced in the Stipulation by the old numbering: Sections 12-43-222(1)(g), (i) and (k)). She agreed to probationary terms if she ever reinstated her registration. Then as now, both the RP Board and the PCE Board use the same authority to take discipline: Section 12-43-222 formerly and Section 12-245-226 currently.

Sometime thereafter the PCE Board learned of the Stipulation. On May 10, 2017 it filed with the OAC a "Notice of Duty to Answer, Notice to Set, Notice of Hearing, and Notice of Charges" ("Notice of Charges"). The Notice of Charges contained a single count: it alleged that the Respondent had been disciplined by another board *out of state*. (As described in Section 12-43-222(2), now Section 12-245-224(2).) The PCE Board

erroneously asserted and apparently continues to assert that the action of the RP Board could be the basis for discipline under this subsection applicable to out-of-state discipline. After a tortuous procedural history described more fully below, the January 13, 2020 hearing was held. Because the Stipulation is not out-of-state discipline, no sanction may be imposed. The ALJ so orders.

In 2019 title 12 of the C.R.S. was repealed and reenacted with new numbering. What had been title 12, article 43 became title 12, article 243. The renumbering has not changed the substance of the statutes. For the most part, the ALJ will refer to the old numbering. The old numbering appears in the Notice of Charges and in other relevant documents.

Procedural History

The ALJ's September 8, 2017 Initial Decision

Following the submission of the May 10, 2017 Notice of Charges, the Respondent moved to dismiss on June 9, 2017. The Respondent noted that the only allegation was that the Respondent had been disciplined out of state. An ALJ denied the motion in an order dated June 23, 2017. Then on August 3, 2017 the PCE Board moved for summary judgment. In that motion, it argued that Section 12-43-222(2) allowed it to discipline for disciplinary actions taken by *Colorado* mental health boards. The Respondent responded in opposition August 10, 2017. The undersigned reviewed these motions and the case file. He conferred with the original ALJ and determined that the motion to dismiss should have been granted. He therefore issued an Initial Decision dismissing the case on September 8, 2017.

Again, the PCE Board's Notice of Charges has a single count. It alleges a basis to sanction the Respondent per Section 12-43-222(2), C.R.S.:

A disciplinary action relating to a license, registration, or certification to practice a profession licensed, registered, or certified under this article or any related occupation in any other state, territory, or country for disciplinary reasons constitutes prima facie evidence of grounds for disciplinary action, including denial of licensure, registration, or certification, by a board. This subsection (2) applies only to disciplinary actions based upon acts or omissions in such other state, territory, or country substantially similar to those acts or omissions set out as grounds for disciplinary action pursuant to subsection (1) of this section.

As can be seen, the Stipulation with the RP Board does not fit this description. The action by that board is not a "disciplinary action ... in any other state, territory, or country" The RP Board is a Colorado board. The PCE Board has never itself independently alleged a basis to discipline per Section 12-43-222(1)(g),(i), and (k).

In responding to the Respondent's motion for summary judgment, the PCE Board

made an argument based on the language of Section 12-43-222(2). It asserted that the first sentence of Section 12-43-222(2) has two subparts separated by “or”: one for in-state discipline under article 43 and one for out-of-state discipline. Such a reading is ungrammatical and erroneous. Neither subpart is a complete sentence and neither subpart by itself provides authority to discipline. Only by linking a “disciplinary action” and “in any other state,” does the sentence make sense. Statutory language is to be construed according to the rules of grammar and common usage. Section 2-4-101, C.R.S.

The PCE Board's August 15, 2018 Order of Remand

Following the ALJ's September 8, 2017 Initial Decision, the PCE Board remanded the case to the ALJ almost a year later on August 15, 2018. Nothing in the remand challenged the ALJ's analysis of Section 12-43-222(2). The remand opined that the Board had the authority to sanction the Respondent per Sections 12-43-224(1)(b) and 12-43-222(1)(g), (1)(i) and (1)(k), C.R.S. Again, these final three subsections were the ones the Respondent agreed to in the Stipulation. The Stipulation and these three subsections are referenced in the Notice of Charges. But the Notice of Charges contains no allegation of a basis to discipline per subsections (1)(g), (1)(i) and (1)(k). Again, its only count and allegation is that the admissions to the RP Board constitute out-of-state discipline. The PCE Board has never moved to amend the Notice of Charges to allege a basis to discipline per subsections (1)(g), (1)(i) and (1)(k). Section 12-43-224(1)(b) is not helpful to the PCE Board as is discussed in the Conclusions of Law below.

The PCE Board's Second Motion for Summary Judgment

On December 19, 2018 the PCE Board again moved for summary judgment. Although it continued to assert that it could sanction the Respondent per Section 12-43-222(2), C.R.S., it did not reassert its argument based on the word “or” in the subsection. As stated, this argument was not asserted in the Order of Remand. The ALJ denied the Board's motion for summary judgment in an order dated January 17, 2019.

The Respondent's Second Motion for Summary Judgment and the ALJ's April 15, 2019 Second Initial Decision

On April 2, 2019 the Respondent filed a “Motion for Judgment on the Pleadings, or in the Alternative, Motion for Summary Judgment.” This motion made the same argument that was granted by the ALJ in his first Initial Decision September 8, 2017. The Board responded in opposition April 10, 2019.

Again nothing had changed; the Board had not amended its Notice of Charges. Its sole count still alleged a basis to discipline per Section 12-43-222(2). The ALJ therefore issued his second Initial Decision dated April 15, 2019. It ordered that no discipline be imposed.

The PCE Board's Second Remand

The PCE Board again remanded the case to the OAC August 7, 2019. The second remand again relied on Section 12-43-224(1)(b) discussed in the Conclusions of Law below.

The Appeal to the Court of Appeals

At some point around this time, the Respondent attempted to appeal the PCE Board's second remand to the Colorado Court of Appeals. The ALJ does not have a record of the dates concerning this appeal. The appeal was denied as the PCE Board had not issued a final order.

Subsequent Submissions and the ALJ's November 25, 2019 Order

Since the second remand, the PCE Board again filed a motion for summary judgment on October 24, 2019. The Respondent also filed a motion for partial summary judgment November 8, 2019. Both motions were denied by the ALJ in an order dated November 25, 2019.

At this point the PCE Board still had not moved to amend the Notice of Charges to include a basis to sanction other than Section 12-43-222(2). In the November 25, 2019 order the ALJ stated that he would issue an Initial Decision based on the Notice of Charges. However, he also stated that in order to avoid any more procedural problems, he would also make alternative findings. These findings would assume the hypothetical situation that Sections 12-43-222(1)(g), (1)(i) and (1)(k) had been alleged.

At the January 13, 2020 hearing the ALJ heard evidence germane to this alternative, hypothetical situation. The Board presented evidence and argument that Respondent's professional counselor license should be placed on probation. The Respondent presented evidence that if a violation under these subsections had been charged, she has engaged in rehabilitative activities that make any further probation unnecessary. At the January 13, 2020 hearing, the PCE Board still had not moved to amend the Notice of Charges.

Findings of Fact

Based upon the evidence presented at the hearing, and assuming that a basis to sanction per Sections 12-43-222(1)(g), (1)(i) and (1)(k) had been alleged, the ALJ makes the following findings of fact:

1. The Respondent was licensed as a professional counselor by the PCE Board April 25, 2015.
2. The Respondent has never practiced in the mental health field outside of Colorado. There is no evidence that she has ever held any license, registration or certificate to perform work in the mental health field from any other state.
3. The PCE Board's exhibit 1 contains a May 29, 2015 letter from the RP Board to the Respondent asking her to respond to a complaint. The complaint is attached, although parts of it have been whited out. The complaint is a hearsay statement, is not otherwise reliable, is incomplete, and there is insufficient evidence to establish the allegations made therein. The Respondent did not admit to the truth of these statements in her admissions in the Stipulation.

4. Exhibit 2 is the Stipulation, effective August 12, 2016. It provides and the ALJ finds that the Respondent's psychotherapist registration had expired by August 31, 2015. The Stipulation set out a one-year probationary term in the event the Respondent's registration were to be reinstated to active status. The probationary terms included a practice monitor and 30 hours of continuing education.

5. The Respondent has not sought such reinstatement since agreeing to the Stipulation. It is not the case that she has failed to "finish" the requirements of the Stipulation, as argued by the PCE Board.

6. In the Stipulation, the Respondent made no admissions to the allegations in the complaint at exhibit 1. She did admit to the following:

- a. Beginning on or around July 2013, Respondent provided sex offender treatment to client AH.
- b. Respondent failed to maintain appropriate boundaries with AH by excessive and inappropriate communication with AH, including multiple and lengthy telephone calls with AH after hours.
- c. Respondent failed to refer AH to another practitioner.
- d. Respondent failed to seek supervision regarding AH with her supervisor.

7. Based on these admissions, the Respondent also agreed that she had violated Sections 12-43-222(1)(g), (1)(i) and (1)(k) as well as Sex Offender Management Board Standard 4.300 F. The Sex Offender Management Board ("SOMB") is supported by the Sex Offender Management Unit of the Division of Criminal Justice within the Colorado Department of Public Safety. The SOMB Standards are not published in the manner required for rules as set out in Section 24-4-103(10), C.R.S.

8. Had violations of Sections 12-43-222(1)(g), (1)(i) and (1)(k) been charged in this current case, those charges would have been established by this admission.

9. The Respondent signed a confidential agreement with the SOMB dated October 25, 2015 agreeing to have a practice monitor submit quarterly reports to the SOMB for a year. Exhibit A.

10. Sheila Pomeranz, LCSW, acted as that practice monitor. Ms. Pomeranz was also the Respondent's supervisor at the Aurora Mental Health Center. Ms. Pomeranz wrote four reports to the SOMB dated January 19, 2016, April 19, 2016, May 18, 2016, and July 24, 2016. Exhibits C-F.

11. Jill Surber Blackwell acted as the Respondent's therapist for a year for the SOMB.

12. In her January 19, 2016 report, Ms. Pomeranz stated that the Respondent (acting as a therapist) participated appropriately in multiple therapy formats. Ms.

Pomeranz acted as both the Respondent's supervisor and as a co-therapist for some groups the Respondent facilitated. As such, she had a good opportunity to observe her.

13. Ms. Pomeranz reviewed the complaint that brought about the SOMB's confidential agreement. Ms. Pomeranz addressed with the Respondent concerns Ms. Pomeranz had with the Respondent's response to the complaint. Ms. Pomeranz further reported that the Respondent was "receptive to feedback about how some or her thinking was distorted and not beneficial therapeutically." Exhibit C.

14. Exhibit D is Ms. Pomeranz's April 19, 2016 report. In that report Ms. Pomeranz wrote in part:

A few issues have presented this quarter which have warranted discussion with Ms. Van Dorn, primarily her decision to consult with co-workers about a client she was struggling with, and not including me in these conversations until she requested to transfer the client to another therapist. ... While she was aware enough to recognize the issues she was having, and cognizant of the need to inform others, her supervisor must be informed sooner rather than later.

...

There was also the opportunity this quarter to examine Ms. Van Dorn's ... disclosing personal information whether directly or indirectly. We were able to assess what she may inadvertently communicate to clients, and in so doing, whether her presentation reflected the professional identity she wants to portray.

While Ms. Van Dorn is in the difficult position of needing to be brutally honest with herself in order to be able to hear, consider and accept constructive criticism, she has been open to it. Some feedback has been fairly difficult for her to hear, however, she has not allowed herself to present as defensive in response, and appears to be trying to integrate the feedback and apply it to herself, as opposed to denying that it applies to her at all.

15. The "disclosing personal information" was an incident when the Respondent told clients that she was afraid of spiders.

16. Exhibit E is Ms. Pomeranz's May 18, 2016 report. It this not on letterhead like her other reports in that it was prepared to respond to an email. In it she wrote in part:

In addressing appropriate/inappropriate use of supervision, and identifying this as having been one of the things which contributed to her inappropriate interactions with a client, I was referencing the situation at her previous agency that led

to the complaint. There have been a couple of inadvertent self-disclosures which were not of an extremely personal nature that we were able to address, and Ms. Van Dorn was, and has been very receptive to examining perspectives which differ from her own. She has presented as appreciative of myself and others' willingness to share our observations of her, with her.

17. Exhibit F is Ms. Pomeranz's fourth and final report to the SOMB dated July 24, 2016. In it she writes in part:

During this quarter Ms. Van Dorn demonstrated significant growth in addressing a potentially uncomfortable situation around setting boundaries with a co-worker who was, in her opinion, spending too much time in her offices

Ms. Van Dorn has been observant of co-workers therapeutic styles, as well as how her co-workers interact with clients. ... Ms. Van Dorn has demonstrated greater self-awareness and deliberate integration of feedback she has received both from co-workers and myself.

Also during this quarter I asked Ms. Van Dorn to review the response she submitted to the SOMB regarding the complaint against her. ...

Ms. Van Dorn was able to identify boundaries she had crossed in terms of contacting a client outside of business hours, and against company policy, which she had previously defended as having been the right thing to do, and in the best interests of the client. She understands the necessity of documenting all interactions with clients regardless of whether she has objective data to support what she is documenting.

18. Exhibit G is a letter to the Respondent dated November 9, 2016 from Michelle Geng of the Division of Criminal Justice. It reports that the Respondent's confidential agreement with the SOMB had been fulfilled and completed.

19. Ms. Pomeranz also testified at the hearing. From her testimony it is clear that she was vigorous in having the Respondent confront the issues that led to the Stipulation. She described the Respondent as not defensive or argumentative and open to feedback. Per Ms. Pomeranz, the Respondent exhibited growth regarding boundaries.

20. The Respondent also testified and presented as non-defensive about the admissions she made in the Stipulation. She appears to appreciate the ethical problems identified. She believes she initially made thinking errors about the complaint. She described the feedback she received from Ms. Pomeranz as difficult and necessary.

21. Elizabeth Schmidt is a licensed professional counselor and a licensed alcohol counselor. She is the Respondent's current supervisor at Correctional

Psychology Associates. The Respondent was hired there in August 2016. Ms. Schmidt has a very high opinion of the Respondent and her skills as a therapist. Ms. Schmidt was so impressed that she and a psychologist Dr. Morley, promoted the Respondent to act as a clinical supervisor in September 2017. As a supervisor, the Respondent now supervises other therapists. Ms. Schmidt believes the Respondent provides excellent therapy, is clinically minded, is very good at assessment, and is very well “boundaried.” She notes that their clients are “boundary pushers.” Furthermore, it is Ms. Schmidt’s opinion that the Respondent is very skilled at proper documentation. Ms. Schmidt regards herself as a friend of the Respondent.

22. The Notice of Charges seeks as a sanction revocation of the Respondent’s license or “otherwise appropriately disciplining” her. At hearing, though, the PCE Board made clear that the sanction it was seeking should be the same terms as the Stipulation with the RP Board, had the Respondent sought to reinstate her psychotherapist registration. The ALJ will therefore make findings related to this request. Again, this assumes that a basis to sanction per Sections 12-43-222(1)(g), (1)(i) and (1)(k) had been charged.

23. Respondent argues that under the hypothetical scenario where these subsections had been charged and established, no additional period of probation is warranted.

24. The PCE Board argues that the issues identified by Ms. Pomeranz in her practice monitoring for the SOMB show a need for yet more practice monitoring. The ALJ does not make this inference. Rather, the issues noted in Ms. Pomeranz’s reviews demonstrate that her review was thoughtful and serious. The PCE Board challenges Ms. Schmidt’s strong support for the Respondent as biased because of their friendship.

25. Whatever the merits of these arguments, if violations of Sections 12-43-222(1)(g), (1)(i) and (1)(k) been charged and established, a one-year period of probation and practice monitoring would be appropriate. This is the same period ordered by the RP Board. The ALJ makes this recommendation notwithstanding the fact that the violations identified by the RP Board are more than three years old. The facts underlying these violations are even older. The ALJ has no doubt that Ms. Pomeranz’s supervision was challenging and that the Respondent has benefitted greatly from it. Similarly, Ms. Schmidt’s support for the Respondent is objectively based on the Respondent’s merits as a therapist. Nevertheless, it is sensible and appropriate that the PCE Board have a say in who is selected to monitor the Respondent’s practice and to satisfy for itself that Respondent’s issues have been resolved. Nor is a year of probation excessive.

26. The Stipulation with the RP Board also required the Respondent to complete 30 hours of continuing education in the areas of “boundaries, dual relationships, and ethics.” Exhibit 2, paragraph 23. Since that time, the Respondent has completed almost 200 hours of continuing education. Proof of some of these courses appears at exhibits O-V.

27. Those courses that deal with the requirement of the Stipulation appear at exhibit O: “Legal and Ethical Issues for Mental Health Clinicians,” 6.25 hours, May 9,

2018; exhibit Q: “CAC Ethics II,” 14 hours, July 12-13, 2018. Although this is not apparent from the title, the Respondent testified that the course: “Dialectical Behavior Therapy (DBT)” at exhibit R dealt with boundary and ethics issues. Per the Respondent’s certificate of completion, the course was for two days, September 27 and 28, 2018, but no specific amount of hours is set out. Also per the Respondent, the course “Strategies for Self-Improvement and Change” at exhibit S also dealt with boundaries and inadvertent self-disclosures. Exhibit S shows that this course was for 21 hours over the period October 31, November 1 and 2, 2018.

28. The ALJ has no doubt that had the RP Board reviewed these courses after a reinstated registration, it would have deemed the 30-hour requirement satisfied. Still, it is apparently the Respondent’s practice to regularly engage in continuing education activities. It does not appear particularly burdensome to her to complete such activities. The only problem would be finding such courses in a one-year probationary period. Therefore, the ALJ orders that the Respondent complete eight additional hours of continuing education approved by the PCE Board in the hypothetical one-year probationary ordered. Such approval shall be made prior to or after completion of the course and will not be unreasonably withheld.

Conclusions of Law

Based upon the foregoing findings of fact, the ALJ enters the following conclusions of law:

1. In the hypothetical situation where violations of Sections 12-43-222(1)(g), (1)(i) and (1)(k) had been charged, an appropriate sanction is: 1) one year of probation, 2) practice monitoring by a monitor approved by the PCE Board with quarterly reports, and 3) eight hours of continuing education in any of the following areas: boundaries, dual relationships, or ethics.

2. The PCE Board in its two remands appeared to recognize and abandon its original contention that Section 12-43-222(2) applies to in-state discipline like the Stipulation with the RP Board. In closing argument however, counsel for the PCE Board asserted that it could still sanction the Respondent per this subsection (and its current version). As explained above, this is erroneous. Section 12-43-222(2) applies to out-of-state discipline and cannot be relied upon to sanction the Respondent. It is the only count made in the Notice of Charges.

3. Section 12-245-226(2)(a) (formerly Section 12-43-224(2)) provides that disciplinary proceedings shall be conducted per the State Administrative Procedure Act at article 4 of title 24 of the C.R.S. Section 24-4-105(2)(a) requires that the Respondent be provided a hearing with notice of the “legal authority” and the “matters of fact and law asserted.” *Spedding v. Motor Vehicle Dealer Board*, 931 P.2d 480, 483 (Colo. App. 1996) (Board improperly asserted that “willful” did not apply to “failure to disclose,” contrary to statutory language); *Colo. Bd. of Med. Exam’rs v. Boyle*, 924 P.2d 1113, 1117 (Colo. App. 1996) (sanction appropriate where ophthalmologist received notice of the pertinent

provisions of the medical practice act regarding felony convictions); *Colo. State Bd. of Dental Exam'rs v. Micheli*, 928 P.2d 839, 842 (Colo. App. 1996) (due process violation for discipline when charges asserted respondent dentist used non-sterile technique; the evidence was that it was the dentist's *assistant* who was ungloved.) The legal authority provided in this case was that the Respondent had been disciplined out of state. The evidence does not support this allegation.

4. For whatever reason, the PCE Board has never chosen to amend the charges to include a substantive allegation of a violation of Sections 12-43-222(1)(g), (1)(i) and (1)(k). The Respondent has consistently objected to this failure; allegations of a violation of subsections (1)(g), (1)(i) and (1)(k) cannot be said to have been tried by consent. See C.R.C.P. 15(b).

5. Nor is Section 12-43-224(1)(b) referenced in the remands availing to the PCE Board. That subsection (now Section 12-43-226(1)(b)) provided:

A licensee, registrant, or certificate holder who **holds** more than one license, registration, or certification pursuant to this article, who has committed any act or failed to act pursuant to the grounds established in section 12-43-222 or 12-43-226, is subject to disciplinary action by all boards that license, register, or certify the person pursuant to this article. The findings, conclusions, and final agency order of the first board to take disciplinary action pursuant to this section against the licensee, registrant, or certificate holder ... is prima facie evidence against the person in any subsequent disciplinary action taken by another board concerning the same act or series of acts. [**Bolding** added.]

This provides that prior discipline by a sister Colorado mental health board is prima facie evidence. But Section 12-43-224(1)(b) is not itself a substantive ground to take discipline. Section 12-43-224(1)(a)(I) (now Section 12-45-226(1)(a)(I)) provided:

A proceeding for discipline of a licensee ... may be commenced when the board that licenses ... the licensee ... has reasonable grounds to believe that the licensee ... has committed any act or failed to act pursuant to the grounds established in section **12-43-222 or 12-43-226**. [**Bolding** added.]

6. Section 12-43-224(1)(b) is not one of those two sections. Section 12-43-224(1)(b) provides that the prior discipline by a Colorado mental health board is prima facie evidence. It is not itself a substantive basis to take discipline. Administrative agencies are legally bound to comply with their enabling statutes. *Sears v. Romer*, 928 P.2d 745, 751 (Colo.App. 1996).

7. Additionally, Section 12-43-224(1)(b) is nowhere identified in the Notice of Charges. What is more, it appears to apply only to a person who "holds" more than one

license. The Respondent is not such a person, her psychotherapist registration expired August 31, 2015.

INITIAL DECISION

It is therefore the Initial Decision of the ALJ that no sanction may be imposed on the Respondent's license.

Per Section 24-4-105(14)(a) this Initial Decision will be sent to the PCE Board only for mailing to the Respondent and PCE Board counsel.

DONE AND SIGNED

January 31, 2020



MATTHEW E. NORWOOD
Administrative Law Judge

Exhibits admitted:

For the PCE Board: exhibits 1-4.

For the Respondent: exhibits A-G, K and O-V.

STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS
DEPARTMENT OF REGULATORY AGENCIES
STATE OF COLORADO

Case No. 2016-4468
OAC Case No. PCE 2017-002

IN THE MATTER OF THE PROCEEDING REGARDING LAUREN VAN DORN,
CASE NUMBER 2016-4468,

Respondent.

BOARD ORDER

This matter is before the State Board of Licensed Professional Counselor Examiners on exceptions to the September 8, 2017 “Order Denying Motion for Summary Judgment, Granting Motion to Dismiss, and Initial Decision” of Administrative Law Judge (ALJ) Matthew Norwood. Having reviewed the administrative record and being fully informed of the premises, the Board now enters this Order.

BACKGROUND

Mental health professionals are regulated and subject to discipline by several statutorily created boards that oversee, respectively: (i) psychologists; (ii) social workers; (iii) marriage and family therapists; (iv) professional counselors; (v) psychotherapists; and (vi) addiction counselors. § 12-43-101, *et seq.*, C.R.S. On August 20, 2009, Lauren Van Dorn was registered as a psychotherapist, registration number 11385. On April 28, 2015, Van Dorn was licensed as a professional counselor, license number LPC 12425.

On August 12, 2016, after her registration as a psychotherapist expired but while her license as a professional counselor was active, Van Dorn entered into a “Stipulation and Final Agency Order” with the Board of Registered Psychotherapists (2016 Stipulation). In the 2016 Stipulation, Van Dorn admits to the following violations of the Colorado Revised Statutes:

- § 12-43-222(1)(g) Failing to meet generally accepted standards of the profession.
- § 12-43-222(1)(i) Maintaining a relationship with a client that is likely to impair professional judgment or increase the risk of client exploitation.
- § 12-43-222(1)(k) Failing to terminate a relationship with a client when it was reasonably clear that the client was not benefitting from the relationship and is not likely to gain such benefit in the future.

In the same Stipulation, Van Dorn agrees that, if she reinstates her psychotherapist registration, she will serve one-year of probation, with a practice monitor, and complete 30 hours of continuing education.

On September 8, 2016, the Board of Licensed Professional Counselor Examiners opened a complaint against Van Dorn based on the 2016 Stipulation. On May 10, 2017, petitioner filed a “Notice of Duty to Answer, Notice to Set, Notice of Hearing, and Notice of Charges” with the Office of Administrative Courts. In the Notice, petitioner requested revocation of Van Dorn’s professional counselor license pursuant to § 12-43-222(2), C.R.S., which provides:

A disciplinary action relating to a license, registration, or certification to practice a profession licensed, registered, or certified under this article or any related occupation in any other state, territory, or country for disciplinary reasons constitutes prima facie evidence of grounds for disciplinary action, including denial of licensure,

registration, or certification, by a board. This subsection (2) applies only to disciplinary actions based upon acts or omissions in such other state, territory, or country substantially similar to those acts or omissions set out as grounds for disciplinary action pursuant to subsection (1) of this section.

On June 9, 2017, Van Dorn filed her answer to the Notice and simultaneously moved to dismiss the matter pursuant C.R.C.P. 12(b)(5).

In her motion to dismiss, Van Dorn argues that § 12-43-222(2) only applies to discipline imposed by a jurisdiction outside of Colorado, and not the discipline imposed in the 2016 Stipulation. On June 23, 2017, ALJ Hollyce Farrell denied the motion, finding that Van Dorn's interpretation of § 12-43-222(2) "would allow a licensee disciplined by one Colorado mental health board to circumvent that discipline by simply allowing their license/registration/certification to expire, and then applying for a different license/registration/certification."

On August 2, 2017, petitioner moved for summary judgment, arguing that the 2016 Stipulation constituted prima facie evidence of grounds for discipline by the Board of Licensed Professional Counselor Examiners pursuant to § 12-43-222(2). In the motion, petitioner requests the same discipline that Van Dorn agreed to in the 2016 Stipulation—one year of probation, with a practice monitor, and 30 hours of continuing education.

On August 10, 2017, Van Dorn responded to the motion for summary judgment. With her response, Van Dorn submitted an affidavit disputing several of petitioner's allegations. As example, Van Dorn states that she completed one year of practice monitoring pursuant to an agreement with the Sex Offender

Management Board before she entered into the 2016 Stipulation, and that the previous practice monitoring should satisfy the 2016 Stipulation. Van Dorn further states that she completed therapy pursuant to her agreement with the Sex Offender Management Board, and that therapy should satisfy the continuing education requirements of the 2016 Stipulation.

On August 17, 2017, petitioner filed a reply in support of its motion for summary judgment. In the reply, petitioner argues that whatever practice monitoring and therapy that Van Dorn previously completed does not satisfy the requirements of the 2016 Stipulation.

On September 8, 2017, ALJ Norwood entered his “Order Denying Motion for Summary Judgment, Granting Motion to Dismiss and Initial Decision.” In his Order, ALJ Norwood sua sponte revisits and grants the motion to dismiss that was previously denied by ALJ Farrell. ALJ Norwood ruled that § 12-43-222(2) only applies to discipline previously entered in jurisdictions outside of Colorado, and that any other interpretation would be “ungrammatical and erroneous.” ALJ Norwood dismissed petitioner’s Notice, concluding that the claim premised on § 12-43-222(2) “fails to state a claim per C.R.C.P. 12(b)(5).”

On November 10, 2017, petitioner filed exceptions, asking the Board of Licensed Professional Counselor Examiners to: (i) reverse ALJ Norwood’s dismissal; (ii) grant summary judgment in petitioner’s favor; and (iii) impose discipline on Van Dorn identical to that imposed in the 2016 Stipulation. Van Dorn

filed a response to the exceptions on November 20 and the Board considered the matter at its regularly scheduled meeting on January 5, 2018.

STANDARD OF REVIEW

A dismissal for failure to state a claim under C.R.C.P. 12(b)(5) is reviewed de novo. *N.M. by and through Lopez v. Trujillo*, 397 P.3d 370, 373 (Colo. 2017).

Accordingly, the Board accepts all factual allegations in the Notice as true, and views them in the light most favorable to petitioner. *Id.* Dismissal is proper only if the facts alleged in the Notice cannot, as a matter of law, support the claim for relief. *Id.* “Motions to dismiss for failure to state a claim are disfavored and should not be granted if relief is available under *any* theory of law.” *Colo. Ethics Watch v. Senate Majority Fund, LLC*, 269 P.3d 1246, 1253 (Colo. 2012) (emphasis added).

In addressing motions to dismiss under C.R.C.P. 12(b)(5), Colorado looks to federal case law addressing motions under the identical provisions of Fed. R. Civ. P. 12(b)(6). *Warne v. Hall*, 373 P.3d 588, 595-97 (Colo. 2016) (adopting the *Iqbal/Twombly* standard for motions to dismiss in Colorado). As the United States Supreme Court recently stated, a motion to dismiss is directed at the factual allegations of a claim, and once a petitioner has “informed the [respondent] of the factual basis for their complaint, they were required to do no more to stave off threshold dismissal for want of an adequate statement of their claim.” *Johnson v. City of Shelby*, 135 S.Ct. 346, 347 (2014). Stated differently, the rules of civil procedure “do not countenance dismissal of a complaint for imperfect statement of the legal theory supporting the claim asserted.” *Id.* at 347 (reversing dismissal of a

Fourteenth Amendment claim that was granted solely because the plaintiff had failed to cite 42 U.S.C. § 1983).

ANALYSIS

An individual may hold one or more mental health licenses, certifications, and/or registrations; and each is subject to regulation by a different mental health board. § 12-43-101, *et seq.*, C.R.S. As such, the legislature has authorized each mental health board to rely on the discipline imposed by its sister boards in determining whether it should also impose discipline on an individual:

A licensee, registrant, or certificate holder who holds more than one license, registration, or certification pursuant to this article, who has committed any act or failed to act pursuant to the grounds established in section 12-43-222 or 12-43-226, is subject to disciplinary action by all boards that license, register, or certify the person pursuant to this article. The findings, conclusions, and final agency order of the first board to take disciplinary action pursuant to this section against the licensee, registrant, or certificate holder ... is prima facie evidence against the person in any subsequent disciplinary action taken by another board concerning the same act or series of acts.

§ 12-43-224(1)(b), C.R.S. (2017). This language is clear and unambiguous, Van Dorn is subject to discipline by both the Board of Registered Psychotherapists and the Board of Licensed Professional Counselor Examiners for identical violations of §§ 12-43-222(1)(g), (1)(i), and (1)(k).

Sections 12-43-222(2) and 224(1)(b) provide evidentiary presumptions based on prior discipline. However, neither statute sets forth the substantive grounds for disciplining Van Dorn, those are contained in §§ 12-43-222(1)(g), (1)(i), and (1)(k). In pursuing discipline, petitioner may rely on the 2016 Stipulation to establish the violations of §§ 12-43-222(1)(g), (1)(i), and (1)(k), pursuant to §§ 12-43-222(2) or

224(1)(b)—depending on which applies to the circumstances of this case, as decided by the ALJ. However, “[b]ecause they are procedural tools to delineate the evidentiary burdens of the parties at trial, they are not of consequence while considering motions under C.R.C.P. 12.” *Rosenthal v. Dean Witter Reynolds, Inc.*, 908 P.2d 1095, 1103 (Colo. 1995). The factual allegations in the Notice support discipline based on violations of §§ 12-43-222(1)(g), (1)(i), and (1)(k), therefore dismissal pursuant to C.R.C.P. 12(b)(5) is not warranted. *See Johnson*, 135 S.Ct. at 347; *Colorado Ethics Watch*, 269 P.3d at 1253.

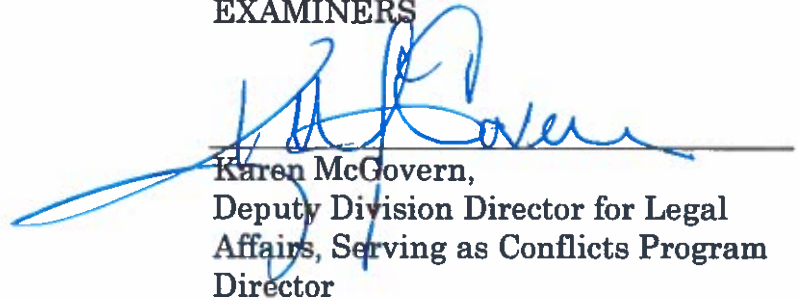
At the same time, it is generally not the role of a reviewing body to rule on a motion for summary judgment in the first instance. In this case, the parties dispute whether the practice monitoring and therapy completed by Van Dorn pursuant to her agreement with the Sex Offender Management Board satisfy the 2016 Stipulation. While the Board questions whether the actions taken by Van Dorn before she entered into the 2016 Stipulation can satisfy her subsequent agreement, that is an issue for the ALJ as fact finder.

CONCLUSION

For the reasons stated herein, the September 8, 2017 “Order Denying Motion for Summary Judgment, Granting Motion to Dismiss, and Initial Decision” is vacated and this matter is remanded to the Office of Administrative Courts for further proceedings consistent with this Board Order.

DONE and ORDERED this 15th day of August 2018.

FOR THE COLORADO STATE
BOARD OF LICENSED
PROFESSIONAL COUNSELOR
EXAMINERS



Karen McGovern,
Deputy Division Director for Legal
Affairs, Serving as Conflicts Program
Director

STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS
DEPARTMENT OF REGULATORY AGENCIES
STATE OF COLORADO

Case No. 2016-4468
OAC Case No. PCE 2017-0002

IN THE MATTER OF THE PROCEEDING REGARDING LAUREN VAN DORN,
CASE NUMBER 2016-4468,

Respondent.

BOARD ORDER

This matter is before the State Board of Licensed Professional Counselor Examiners on exceptions to the April 15, 2019 Initial Decision issued by Administrative Law Judge (ALJ), Matthew Norwood. Having reviewed the administrative record and being fully informed of the premises, the Board now enters this order.

INTRODUCTION

The core issue in this administrative review is whether an administrative law judge must follow a mental health board's¹ interpretation of law on remand. We hold that it does.

BACKGROUND

Mental health professionals are regulated and subject to discipline by the Mental Health Practice Act (MHPA), §§ 12-43-101 to 805, C.R.S. An individual may

¹ Mental health board refers to the boards created under the Mental Health Practices Act, as defined in section 12-43-201(1), C.R.S.

hold one or more mental health licenses, certifications, and/or registrations and each is subject to regulation by a different statutorily created mental health board.

Respondent Lauren Van Dorn was registered as a psychotherapist (RP) on August 20, 2009, registration number 11385. Van Dorn was subsequently licensed as a professional counselor (LPC) on April 28, 2015, license number LPC 12425. Her registration to practice as an RP expired on August 31, 2015.

On August 12, 2016, after her registration as a psychotherapist expired but while her license as a professional counselor was active, Van Dorn entered into a “Stipulation and Final Agency Order” (2016 Stipulation) with the Board of Registered Psychotherapists (RP Board). In the 2016 Stipulation, Van Dorn admits to the following violations of the MHPA:

- § 12-43-222(1)(g) Failing to meet generally accepted standards of the profession.
- § 12-43-222(1)(i) Maintaining a relationship with a client that is likely to impair professional judgment or increase the risk of client exploitation.
- § 12-43-222(1)(k) Failing to terminate a relationship with a client when it was reasonably clear that the client was not benefitting from the relationship and is not likely to gain such benefit in the future.

Van Dorn also agrees that, if she reinstates her psychotherapist registration, she will serve one-year of probation, with a practice monitor, and complete 30 hours of continuing education.

On September 8, 2016, the Board of Licensed Professional Counselor Examiners (LPC Board) opened a complaint against Van Dorn based on the 2016 Stipulation. On May 10, 2017, Petitioner filed a “Notice of Duty to Answer, Notice

to Set, Notice of Hearing, and Notice of Charges” with the Office of Administrative Courts. In the Notice, Petitioner alleges that the 2016 Stipulation is prima facie evidence of grounds for discipline by the Board pursuant to section 12-43-222(2), C.R.S., and requests revocation of Van Dorn’s professional counselor license, or other appropriate discipline.²

On June 9, 2017, Van Dorn filed her answer to the Notice and simultaneously moved to dismiss the matter under C.R.C.P. 12(b)(5), arguing that section 12-43-222(2) only applies to discipline imposed by a jurisdiction outside of Colorado, and not the discipline imposed by the RP Board in the 2016 Stipulation. On June 23, 2017, ALJ Hollyce Farrell denied Van Dorn’s motion, finding that her interpretation of section 12-43-222(2) is contrary to the intent of the MHPA because the MHPA applies to both RPs and LPCs and Van Dorn’s statutory interpretation “would allow a licensee disciplined by one Colorado mental health board to circumvent that discipline by simply allowing their license/registration/certification to expire, and then applying for a different license/registration/certification.”

On August 2, 2017, Petitioner moved for summary judgment, arguing that the 2016 Stipulation constituted prima facie evidence of grounds for discipline by the LPC Board pursuant to section 12-43-222(2). In opposing to the motion for

² Section 12-43-222(2), C.R.S., provides:

A disciplinary action relating to a license, registration, or certification to practice a profession licensed, registered, or certified under this article or any related occupation in any other state, territory, or country for disciplinary reasons constitutes prima facie evidence of grounds for disciplinary action, including denial of licensure, registration, or certification, by a board. This subsection (2) applies only to disciplinary actions based upon acts or omissions in such other state, territory, or country substantially similar to those acts or omissions set out as grounds for disciplinary action pursuant to subsection (1) of this section.

summary judgment, Van Dorn disputed several of Petitioner's allegations.

Specifically, Van Dorn contends that practice monitoring and therapy she completed pursuant to an agreement with the Sex Offender Management Board (SOM Board) before she entered into the 2016 Stipulation, based on the same conduct at issue in the 2016 Stipulation, should satisfy the discipline imposed by the 2016 Stipulation.

On September 8, 2017, ALJ Norwood entered his "Order Denying Motion for Summary Judgment, Granting Motion to Dismiss and Initial Decision." In his Order, ALJ Norwood sua sponte revisits and grants Van Dorn's motion to dismiss that was previously denied by ALJ Farrell. ALJ Norwood ruled that section 12-43-222(2) only applies to discipline previously entered in jurisdictions outside of Colorado, and that any other interpretation would be "ungrammatical and erroneous." ALJ Norwood dismissed Petitioner's Notice, concluding that the claim premised on section 12-43-222(2) "fails to state a claim per C.R.C.P. 12(b)(5)."

On November 10, 2017, Petitioner filed exceptions, asking the LPC Board to: (i) reverse ALJ Norwood's dismissal; (ii) grant summary judgment in Petitioner's favor; and (iii) impose discipline on Van Dorn identical to that imposed in the 2016 Stipulation. Van Dorn filed a response to the exceptions on November 20 and the Board considered the matter at its regularly scheduled meeting on January 5, 2018.

The LPC Board issued its Board Order on August 15, 2018. A copy of the Board Order is attached as **Appendix A** and incorporated herein by reference. The Board Order concluded that the MHPA "authorized each mental health board to rely on the discipline imposed by its sister boards in determining whether it should

also impose discipline.” In reaching this decision, the LPC Board held that under the “clear and unambiguous” language of the MHPA, specifically section 12-43-224(1)(b), Van Dorn is subject to discipline by the RP Board and the LPC Board for her violations of sections 12-43-222(1)(g), (1)(i), and (1)(k). Section 12-43-224(1)(b) provides:

A licensee, registrant, or certificate holder who holds more than one license, registration, or certification pursuant to this article, who has committed any act or failed to act pursuant to the grounds established in section 12-43-222 or 12-43-226, is subject to disciplinary action by all boards that license, register, or certify the person pursuant to this article. The findings, conclusions, and final agency order of the first board to take disciplinary action pursuant to this section against the licensee, registrant, or certificate holder ... is prima facie evidence against the person in any subsequent disciplinary action taken by another board concerning the same act or series of acts.

§ 12-43-224(1)(b), C.R.S. (2017). The LPC Board explained that sections 12-43-222(2) and 12-43-224(1)(b), provide evidentiary presumptions for a mental health board to rely on when disciplining a licensee, registrant, or certificate holder based on prior discipline, while the substantive grounds for disciplining Van Dorn are contained in sections 12-43-222(1)(g), (1)(i), and (1)(k). Thus, Petitioner may rely on the 2016 Stipulation to impose discipline on Van Dorn pursuant to section 12-43-222(2) or section 12-43-224(1)(b), depending on which applies to the circumstances of this case, as decided by the ALJ. The Board Order concluded that factual allegations in the Notice support discipline based on violations of section 12-43-222(1)(g), (1)(i), and (1)(k), and therefore dismissal under C.R.C.P. 12(b)(5) is improper. Finally, the Board expressed doubt as to whether the practice monitoring and therapy Van Dorn completed pursuant to her agreement with the SOM Board

can satisfy her subsequent agreement with the RP Board, but concluded that the issue should be decided by the ALJ as factfinder, rather than a reviewing body. Accordingly, the Board Order remanded the matter to the OAC for further proceedings consistent with the Board Order.

On remand, Petitioner requested a new setting conference from OAC and a hearing was scheduled for May 15 and 16, 2019 in front of ALJ Norwood.

On December 19, 2018, Petitioner filed a Renewed Motion for Summary Judgment, reasserting the arguments set forth in its initial Motion for Summary Judgment and arguing that the Board Order constitutes the “law of the case” that the LPC Board may discipline Van Dorn based on the 2016 Stipulation under sections 12-43-222(2) and 12-43-224(1)(b). In the motion, Petitioner requests the same discipline that Van Dorn agreed to in the 2016 Stipulation—one year of probation, with a practice monitor, and 30 hours of continuing education.

On January 17, 2019, ALJ Norwood denied Petitioner’s renewed Motion for Summary Judgment, restating his basis for dismissing the matter in the first Initial Decision—that the LPC Board lacks authority to discipline Van Dorn under section 12-43-222(2) based on the 2016 Stipulation because the statute only applies to discipline entered in jurisdictions outside of Colorado. ALJ Norwood also expressed his disagreement with the Board Order’s assertion in remanding the case that the

LPC Board has authority to sanction Van Dorn under sections 12-43-224(1)(b), (i), and (k) because Petitioner made no allegation relying on those subsections.³

On April 2, 2019, Van Dorn filed a Motion for Judgment on the Pleadings, or in the Alternative, Motion for Summary Judgment, requesting that ALJ Norwood dismiss the matter pursuant to his Order Denying Motion for Summary Judgment.

On April 15, 2019, ALJ Norwood issued an “Initial Decision,” incorporating his previous orders and granting Respondent’s Motion for Judgment on the Pleadings, or in the Alternative, Motion for Summary Judgment. Noting that “[n]othing has changed,” since he granted Van Dorn’s motion to dismiss in the first Initial Decision, ALJ Norwood ruled that, as a matter of law, Petitioner has no authority to discipline Van Dorn under section § 12-43-222(2) because the statute only applies to discipline entered in jurisdictions outside of Colorado; and Petitioner cannot prove its claim premised on section 12-43-222(2) at a hearing. ALJ Norwood repeated his assertion that, contrary to the Board Order remanding the case, Petitioner did not have authority to sanction Van Dorn pursuant sections 12-43-224(1)(b), (i), and (k) because Petitioner has made no allegation relying on those subsections and has not moved to amend the Notice of Charges.⁴ Accordingly, ALJ Norwood dismissed Petitioner’s Notice and vacated the hearing scheduled for May 15 and 16, 2019.

³ ALJ Norwood’s comment is perplexing because the Board Order contains no allegation whatsoever regarding two of the cited subsections, 12-43-224(1)(i) and (k), and moreover, those subsections do not even exist.

⁴ The Board again questions ALJ Norwood’s comment because the Board Order contains no allegation regarding two of the cited subsections, 12-43-224(1)(i) and (k), and moreover, those subsections do not even exist.

On May 22, 2019, Petitioner filed exceptions, asking the LPC Board to: (i) reverse ALJ Norwood's dismissal; (ii) hold that section 12-43-222(2) provides a basis for a Colorado mental health board to discipline a licensee, registrant, or certificate holder as a result of discipline rendered by another Colorado mental health board; (iii) grant Petitioner's Renewed Motion for Summary Judgment; and (iv) impose discipline on Van Dorn identical to that imposed by the RP Board and as set forth in the 2016 Stipulation. Van Dorn filed a response to the exceptions on May 31 and Petitioner filed its reply on June 4. The Board considered the matter at its regularly scheduled meeting on July 12.

STANDARD OF REVIEW

Administrative agencies have plenary authority to review the decisions of administrative law judges and modify or reverse them if they are erroneous. *See Wecker v. TBL Excavating, Inc.*, 908 P.2d 1186, 1188 (Colo. App. 1995) (citing *Dir. v. Consolidation Coal Co.*, 884 F.2d 926, 929 (6th Cir. 1989)). An agency in a review proceeding may remand the case to the ALJ for further proceedings as it may direct, or it may affirm, set aside, or modify the order of an ALJ, or any sanction or relief entered therein, in conformity with the facts and the law. § 24-4-105(15)(b), C.R.S.

While findings of evidentiary fact may not be altered if supported by the evidence, an agency is not bound by the ALJ's ultimate conclusions. § 24-4-105(15)(b). "It is commonly recognized that ALJs are entirely subject to the agency on matters of law." *Iran Air v. Kugelman*, 996 F.2d 1253, 1260 (D.D.C. 1993) (Ginsburg, J.) (quoting Antonin Scalia, *The ALJ Fiasco—A Reprise*, 47 U. Chi. L.

Rev. 57, 62 (1979) (internal quotation marks omitted)). Thus, an agency can substitute its judgment for that of the ALJ with respect to ultimate conclusions, so long as the agency's findings have a reasonable basis in law and are supported by substantial evidence in the record. *Colo. State Bd. of Dental Exam'rs v. Major*, 996 P.2d 246, 248 (Colo. App. 1999).

An agency's interpretation of a statute the agency is charged with enforcing is entitled to great deference and must be accepted if it has a reasonable basis in law and is warranted by the record. *Reiff v. Colo. Dep't of Health Care Policy & Fin.*, 148 P.3d 355, 358 (Colo. App. 2006). "An agency has dominant authority to resolve statutory interpretation within the agency and its interpretations are binding on others in the adjudicative hierarchy." 32 Charles Alan Wright & Charles H. Koch, Jr., *Fed. Practice & Procedure* § 8216. *See also Iran Air*, 996 F.2d at 1261–1262 (requiring ALJ to follow agency's interpretation of law on remand as the "law of the case"). "There is no dispute that a lower court must follow the law of the case as laid out by an appellate tribunal." *Thompson v. Catlin Ins. Co. (UK) Ltd.*, 431 P.3d 224, 228 (Colo. 2018).

ANALYSIS

The LPC Board has plenary authority to resolve statutory interpretation of the MHPA, the statute it is charged with enforcing. *See Reiff*, 148 P.3d at 358. In reviewing the decision of an ALJ, the LPC Board is authorized to modify or reverse the ALJ's decision if it is erroneous, and to remand the case for further proceedings as the Board may direct. § 24-4-105(15)(b), C.R.S. The LPC Board's interpretation

of the MHPA is entitled to great deference. *See Reiff*, 148 P.3d at 358. While ALJ Norwood may disagree with the LPC Board's conclusions of law and interpretation of the MHPA, the Board's Orders are binding and must be accepted on remand.

In his second Initial Decision, ALJ Norwood glosses over the Board Order's conclusion that Petitioner can rely on section 12-43-224(1)(b) as an evidentiary presumption in disciplining Van Dorn for her admitted violations of the MHPA, by asserting that Petitioner was required to raise allegations under sections 12-43-224(1)(b), (i), and (k) in the Notice of Charges, or to amend the Notice to include such allegations. In doing so, ALJ Norwood incorrectly interprets the Board Order as invoking sections 12-43-224(1)(b), (i), and (k) as the grounds for disciplining Van Dorn. The Board Order, however, contains no allegation whatsoever regarding subsections 12-43-224(1)(i) or (k), and in fact, those subsections do not even exist. Moreover, the Board Order makes clear that section 12-43-224(1)(b), like section 12-43-222(2), does not set forth substantive grounds for disciplining Van Dorn; it provides an evidentiary presumption based on prior discipline, which is not of consequence when considering a motion under C.R.C.P. 12. *Rosenthal v. Dean Witter Reynolds, Inc.*, 908 P.2d 1095, 1103 (Colo. 1995) ("It is not necessary to plead [evidentiary presumptions] or even to plead facts that would support such theories in a complaint"). The substantive grounds for disciplining Van Dorn are contained in sections 12-43-222(1)(g), (1)(i), and (1)(k), the provisions of the MHPA Van Dorn admitted to violating in the 2016 Stipulation. Petitioner asserted the substantive statutory grounds for discipline in the Notice of Charges, which expressly quotes

sections 12-43-222(1)(g), (1)(i), and (1)(k). Petitioner properly raised allegations under sections 12-43-222(1)(g), (1)(i), and (1)(k) in the Notice of Charges.

Accordingly, the August 2018 Board Order is binding and must be followed on remand.

CONCLUSION

For the reasons stated herein, the April 15, 2019, Initial Decision is vacated and this matter is remanded to the Office of Administrative Courts for further proceedings consistent with this Board Order.

DONE and ORDERED this 7th day of August , 2019.

FOR THE COLORADO STATE
BOARD OF LICENSED
PROFESSIONAL COUNSELOR
EXAMINERS



Karen McGovern,
Conflicts Program Director

STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS
DEPARTMENT OF REGULATORY AGENCIES
STATE OF COLORADO

Case No. 2016-4468
OAC Case No. PCE 2017-002

IN THE MATTER OF THE PROCEEDING REGARDING LAUREN VAN DORN,
CASE NUMBER 2016-4468,

Respondent.

BOARD ORDER

This matter is before the State Board of Licensed Professional Counselor Examiners on exceptions to the September 8, 2017 "Order Denying Motion for Summary Judgment, Granting Motion to Dismiss, and Initial Decision" of Administrative Law Judge (ALJ) Matthew Norwood. Having reviewed the administrative record and being fully informed of the premises, the Board now enters this Order.

BACKGROUND

Mental health professionals are regulated and subject to discipline by several statutorily created boards that oversee, respectively: (i) psychologists; (ii) social workers; (iii) marriage and family therapists; (iv) professional counselors; (v) psychotherapists; and (vi) addiction counselors. § 12-43-101, *et seq.*, C.R.S. On August 20, 2009, Lauren Van Dorn was registered as a psychotherapist, registration number 11385. On April 28, 2015, Van Dorn was licensed as a professional counselor, license number LPC 12425.

On August 12, 2016, after her registration as a psychotherapist expired but while her license as a professional counselor was active, Van Dorn entered into a "Stipulation and Final Agency Order" with the Board of Registered Psychotherapists (2016 Stipulation). In the 2016 Stipulation, Van Dorn admits to the following violations of the Colorado Revised Statutes:

- § 12-43-222(1)(g) Failing to meet generally accepted standards of the profession.
- § 12-43-222(1)(i) Maintaining a relationship with a client that is likely to impair professional judgment or increase the risk of client exploitation.
- § 12-43-222(1)(k) Failing to terminate a relationship with a client when it was reasonably clear that the client was not benefitting from the relationship and is not likely to gain such benefit in the future.

In the same Stipulation, Van Dorn agrees that, if she reinstates her psychotherapist registration, she will serve one-year of probation, with a practice monitor, and complete 30 hours of continuing education.

On September 8, 2016, the Board of Licensed Professional Counselor Examiners opened a complaint against Van Dorn based on the 2016 Stipulation. On May 10, 2017, petitioner filed a "Notice of Duty to Answer, Notice to Set, Notice of Hearing, and Notice of Charges" with the Office of Administrative Courts. In the Notice, petitioner requested revocation of Van Dorn's professional counselor license pursuant to § 12-43-222(2), C.R.S., which provides:

A disciplinary action relating to a license, registration, or certification to practice a profession licensed, registered, or certified under this article or any related occupation in any other state, territory, or country for disciplinary reasons constitutes prima facie evidence of grounds for disciplinary action, including denial of licensure,

registration, or certification, by a board. This subsection (2) applies only to disciplinary actions based upon acts or omissions in such other state, territory, or country substantially similar to those acts or omissions set out as grounds for disciplinary action pursuant to subsection (1) of this section.

On June 9, 2017, Van Dorn filed her answer to the Notice and simultaneously moved to dismiss the matter pursuant C.R.C.P. 12(b)(5).

In her motion to dismiss, Van Dorn argues that § 12-43-222(2) only applies to discipline imposed by a jurisdiction outside of Colorado, and not the discipline imposed in the 2016 Stipulation. On June 23, 2017, ALJ Hollyce Farrell denied the motion, finding that Van Dorn's interpretation of § 12-43-222(2) "would allow a licensee disciplined by one Colorado mental health board to circumvent that discipline by simply allowing their license/registration/certification to expire, and then applying for a different license/registration/certification."

On August 2, 2017, petitioner moved for summary judgment, arguing that the 2016 Stipulation constituted prima facie evidence of grounds for discipline by the Board of Licensed Professional Counselor Examiners pursuant to § 12-43-222(2). In the motion, petitioner requests the same discipline that Van Dorn agreed to in the 2016 Stipulation—one year of probation, with a practice monitor, and 30 hours of continuing education.

On August 10, 2017, Van Dorn responded to the motion for summary judgment. With her response, Van Dorn submitted an affidavit disputing several of petitioner's allegations. As example, Van Dorn states that she completed one year of practice monitoring pursuant to an agreement with the Sex Offender

Management Board before she entered into the 2016 Stipulation, and that the previous practice monitoring should satisfy the 2016 Stipulation. Van Dorn further states that she completed therapy pursuant to her agreement with the Sex Offender Management Board, and that therapy should satisfy the continuing education requirements of the 2016 Stipulation.

On August 17, 2017, petitioner filed a reply in support of its motion for summary judgment. In the reply, petitioner argues that whatever practice monitoring and therapy that Van Dorn previously completed does not satisfy the requirements of the 2016 Stipulation.

On September 8, 2017, ALJ Norwood entered his "Order Denying Motion for Summary Judgment, Granting Motion to Dismiss and Initial Decision." In his Order, ALJ Norwood sua sponte revisits and grants the motion to dismiss that was previously denied by ALJ Farrell. ALJ Norwood ruled that § 12-43-222(2) only applies to discipline previously entered in jurisdictions outside of Colorado, and that any other interpretation would be "ungrammatical and erroneous." ALJ Norwood dismissed petitioner's Notice, concluding that the claim premised on § 12-43-222(2) "fails to state a claim per C.R.C.P. 12(b)(5)."

On November 10, 2017, petitioner filed exceptions, asking the Board of Licensed Professional Counselor Examiners to: (i) reverse ALJ Norwood's dismissal; (ii) grant summary judgment in petitioner's favor; and (iii) impose discipline on Van Dorn identical to that imposed in the 2016 Stipulation. Van Dorn

filed a response to the exceptions on November 20 and the Board considered the matter at its regularly scheduled meeting on January 5, 2018.

STANDARD OF REVIEW

A dismissal for failure to state a claim under C.R.C.P. 12(b)(5) is reviewed de novo. *N.M. by and through Lopez v. Trujillo*, 397 P.3d 370, 373 (Colo. 2017).

Accordingly, the Board accepts all factual allegations in the Notice as true, and views them in the light most favorable to petitioner. *Id.* Dismissal is proper only if the facts alleged in the Notice cannot, as a matter of law, support the claim for relief. *Id.* “Motions to dismiss for failure to state a claim are disfavored and should not be granted if relief is available under *any* theory of law.” *Colo. Ethics Watch v. Senate Majority Fund, LLC*, 269 P.3d 1246, 1253 (Colo. 2012) (emphasis added).

In addressing motions to dismiss under C.R.C.P. 12(b)(5), Colorado looks to federal case law addressing motions under the identical provisions of Fed. R. Civ. P. 12(b)(6). *Warne v. Hall*, 373 P.3d 588, 595-97 (Colo. 2016) (adopting the *Iqbal/Twombly* standard for motions to dismiss in Colorado). As the United States Supreme Court recently stated, a motion to dismiss is directed at the factual allegations of a claim, and once a petitioner has “informed the [respondent] of the factual basis for their complaint, they were required to do no more to stave off threshold dismissal for want of an adequate statement of their claim.” *Johnson v. City of Shelby*, 135 S.Ct. 346, 347 (2014). Stated differently, the rules of civil procedure “do not countenance dismissal of a complaint for imperfect statement of the legal theory supporting the claim asserted.” *Id.* at 347 (reversing dismissal of a

Fourteenth Amendment claim that was granted solely because the plaintiff had failed to cite 42 U.S.C. § 1983).

ANALYSIS

An individual may hold one or more mental health licenses, certifications, and/or registrations; and each is subject to regulation by a different mental health board. § 12-43-101, *et seq.*, C.R.S. As such, the legislature has authorized each mental health board to rely on the discipline imposed by its sister boards in determining whether it should also impose discipline on an individual:

A licensee, registrant, or certificate holder who holds more than one license, registration, or certification pursuant to this article, who has committed any act or failed to act pursuant to the grounds established in section 12-43-222 or 12-43-226, is subject to disciplinary action by all boards that license, register, or certify the person pursuant to this article. The findings, conclusions, and final agency order of the first board to take disciplinary action pursuant to this section against the licensee, registrant, or certificate holder ... is *prima facie* evidence against the person in any subsequent disciplinary action taken by another board concerning the same act or series of acts.

§ 12-43-224(1)(b), C.R.S. (2017). This language is clear and unambiguous, Van Dorn is subject to discipline by both the Board of Registered Psychotherapists and the Board of Licensed Professional Counselor Examiners for identical violations of §§ 12-43-222(1)(g), (1)(i), and (1)(k).

Sections 12-43-222(2) and 224(1)(b) provide evidentiary presumptions based on prior discipline. However, neither statute sets forth the substantive grounds for disciplining Van Dorn, those are contained in §§ 12-43-222(1)(g), (1)(i), and (1)(k). In pursuing discipline, petitioner may rely on the 2016 Stipulation to establish the violations of §§ 12-43-222(1)(g), (1)(i), and (1)(k), pursuant to §§ 12-43-222(2) or

224(1)(b)—depending on which applies to the circumstances of this case, as decided by the ALJ. However, “[b]ecause they are procedural tools to delineate the evidentiary burdens of the parties at trial, they are not of consequence while considering motions under C.R.C.P. 12.” *Rosenthal v. Dean Witter Reynolds, Inc.*, 908 P.2d 1095, 1103 (Colo. 1995). The factual allegations in the Notice support discipline based on violations of §§ 12-43-222(1)(g), (1)(i), and (1)(k), therefore dismissal pursuant to C.R.C.P. 12(b)(5) is not warranted. *See Johnson*, 135 S.Ct. at 347; *Colorado Ethics Watch*, 269 P.3d at 1253.

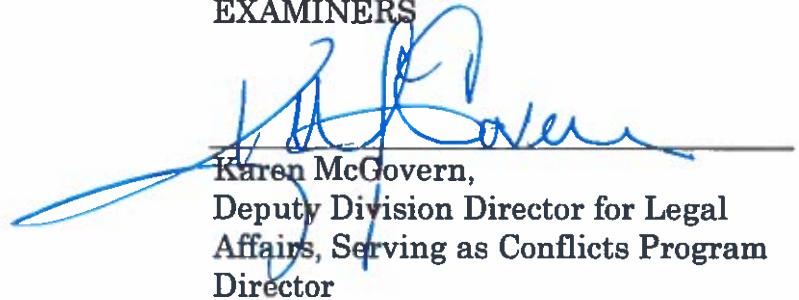
At the same time, it is generally not the role of a reviewing body to rule on a motion for summary judgment in the first instance. In this case, the parties dispute whether the practice monitoring and therapy completed by Van Dorn pursuant to her agreement with the Sex Offender Management Board satisfy the 2016 Stipulation. While the Board questions whether the actions taken by Van Dorn before she entered into the 2016 Stipulation can satisfy her subsequent agreement, that is an issue for the ALJ as fact finder.

CONCLUSION

For the reasons stated herein, the September 8, 2017 “Order Denying Motion for Summary Judgment, Granting Motion to Dismiss, and Initial Decision” is vacated and this matter is remanded to the Office of Administrative Courts for further proceedings consistent with this Board Order.

DONE and ORDERED this 15th day of August 2018.

FOR THE COLORADO STATE
BOARD OF LICENSED
PROFESSIONAL COUNSELOR
EXAMINERS



Karen McGovern,
Deputy Division Director for Legal
Affairs, Serving as Conflicts Program
Director

CERTIFICATE OF SERVICE

This is to certify that a true and correct copy of this BOARD ORDER was served on the following parties herein by electronic means or by depositing copies of the same in the United States Mail, first class, postage prepaid, this 15th day of August, 2018.

Jodanna Haskins, AAG
Colorado Department of Law
Business & Licensing Section
Health & Financial Services Unit
1300 Broadway, 8th Floor
Denver, Colorado 80203
jody.haskins@coag.gov

Skippere Spear, Sr. AAG
Colorado Department of Law
Conflict Counsel
1300 Broadway, 10th Floor
Denver, Colorado 80203
skip.spear@coag.gov

Scott Gelman, Esq.
Gelman & Norberg, LLC
8480 East Orchard Road, Suite 5000
Greenwood Village, Colorado 80111
sgelman@gelmannorberg.com

The Honorable Matthew Norwood
Office of Administrative Courts
1525 Sherman Street, 4th Floor
Denver, CO 80203



BEFORE THE STATE BOARD OF REGISTERED PSYCHOTHERAPISTS

STATE OF COLORADO

Case No. 2015-1494

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE
REGISTRATION TO PRACTICE AS A REGISTERED PSYCHOTHERAPIST IN THE
STATE OF COLORADO OF LAUREN VAN DORN, REGISTRATION NO. RP 11385,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Registered
Psychotherapists ("Board") and Lauren Van Dorn ("Respondent") as follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was registered to practice as a Registered Psychotherapist ("RP") in the State of Colorado on August 20, 2009, being issued RP 11385, which expired on August 31, 2015.
3. This Order is a full and final resolution of case number 2015-1494. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
4. Respondent admits the following:
 - a. Beginning on or around July 2013, Respondent provided sex offender treatment to client AH.
 - b. Respondent failed to maintain appropriate boundaries with AH by excessive and inappropriate communication with AH, including multiple and lengthy telephone calls with AH after hours.
 - c. Respondent failed to refer AH to another practitioner.
 - d. Respondent failed to seek supervision regarding AH with her supervisor.

5. By virtue of the facts admitted in paragraph 4 above, Respondent admits and the Board finds that Respondent violated §12-43-222(1)(g), (i), (k), C.R.S., and Sex Offender Management Board Standard 4.300 F.

6. By virtue of the admissions in paragraphs 4 and 5 above, Respondent is subject to the following disciplinary sanctions that the Board believes is necessary to protect the public health, safety, and welfare.

7. Respondent is not currently practicing as a RP in the State of Colorado, and her RP registration is expired. Should Respondent seek to resume the practice of psychotherapy as a RP in the State of Colorado, she must first notify the Board in writing of her intent to resume practice as a RP in the State of Colorado and submit an application to reinstate her RP registration to active status.

PROBATION

8. If and when Respondent's RP registration is reinstated to active status and the Board authorizes Respondent to resume practice as a RP in Colorado, Respondent's registration to practice psychotherapy in the State of Colorado is hereby placed on probation for one (1) year commencing from the effective date of this Order, or the date Respondent's practice monitor is approved, whichever date is later. During the probationary period, Respondent shall be bound by the terms and restrictions set forth in this Order.

9. The period of probation is tolled during any time that Respondent is not practicing as a RP in this state, and such period of probation shall resume at such time as Respondent resumes practicing in the State of Colorado in accordance with this Order.

10. Credit toward the period of probation will be given only for the period of time during which Respondent is practicing as a RP in Colorado, is being monitored by a practice monitor, and is in full compliance with all terms of this Order.

11. If, at the end of the probationary period, Respondent has adhered to all terms and conditions of this Order, Respondent may request termination of probation. Request for termination of probation must be made in writing to the Board, and Respondent is responsible for establishing, to the satisfaction of the Board, that she has satisfied all terms and conditions of probation.

PRACTICE MONITOR

12. During the term of probation, Respondent's practice shall be monitored by a practice monitor. Within 30 days of the effective date of this Order, Respondent shall submit, in writing, three proposed practice monitors for the Board's approval. Respondent shall include a program-approved practice monitor application from each potential monitor, with attached curriculum vita or resume. The practice monitor shall meet the following criteria:

- a. The practice monitor shall be a licensed, certified, or listed, currently practicing mental health provider in the State of Colorado;

b. It is recommended that the practice monitor have a minimum of five years of experience and has not been subject to professional discipline; and

c. The practice monitor shall have no current or past financial or personal interest in Respondent or Respondent's practice. Former employees and business associates fall under this provision.

13. Respondent must have a practice monitor approved by the Board within two months after this Order is fully executed. If this requirement is not satisfied, Respondent must cease practice and agrees to suspension of her practice until a practice monitor is approved.

14. After the Board's written approval of the practice monitor, Respondent and the practice monitor shall enter into a written contract for monitoring. The practice monitor shall provide a copy of the written contract to the Board as a part of his/her first report to the Board. The contract must contain a provision stating that the practice monitor has received a copy of this Order, the complaint and responsive documents, any investigative report, and any prior practice evaluation; has read these documents; and understands the duties and responsibilities s/he is undertaking as Respondent's practice monitor. The practice monitor shall ensure that a written notification is provided to each of Respondent's clients, informing the clients of the name, address, and telephone number of the practice monitor. This written notification may be provided in a mandatory disclosure statement.

15. The practice monitor shall conduct a practice evaluation during the first month of practice monitoring. The practice evaluation shall examine all aspects of Respondent's practice or proposed practice and her qualifications and ability to practice in accordance with generally accepted standards of practice and with skill and safety for clients, and determine whether she has the necessary qualifications, current ability, and competence to practice. The first practice monitoring report shall include the findings of the practice evaluation.

16. Should the Board determine from the practice monitor's evaluation that Respondent cannot practice any part of her practice with skill and safety for clients in accordance with generally accepted standards of practice or does not have the appropriate qualifications, ability or competence for practice, Respondent shall immediately cease any part of the practice that the Board determines, based on the evaluation, she is not qualified, competent, or safe to conduct. Based on the Board's findings and the evaluation, the Board will determine necessary actions that Respondent must take and conditions Respondent must meet so that Respondent can practice with skill and safety for clients in accordance with generally accepted standards of practice in any areas the Board finds Respondent is not qualified, competent, and safe to practice. Once Respondent satisfies the Board that she is qualified, competent, and safe to fully practice, Respondent may resume full practice.

17. The practice monitoring shall consist of individual, in-person (face-to-face) sessions that occur for one hour, or such longer time as the practice monitor deems necessary, for every 20 hours of client contact, but at least once each month. Respondent and her practice monitor must review and discuss each of Respondent's active cases at least once every month in order to allow the practice monitor to be able to determine whether Respondent is practicing psychotherapy in accordance with generally accepted standards of practice and with skill and safety for her clients.

18. The practice monitor shall submit a written report to the Board on the fifth day of the month following the first full month of practice monitoring. All subsequent reports shall be submitted on the fifth day of each month for the first 12 reports. After the submission of the first 12 reports, unless otherwise ordered by the Board, the practice monitor shall submit his/her reports by the fifth day of every third month (i.e. on a quarterly basis) until the practice monitoring is completed.

19. If at any time the Board has questions or concerns regarding the monitoring, the practice monitor agrees to attend any Board meeting necessary to address the Board's concerns. The Board will give the practice monitor 30 days notice prior to requiring the practice monitor's attendance at the Board meeting.

20. If at any time the practice monitor believes Respondent is not in compliance with this Order, is unable to practice with skill and safety to her clients, or has committed a violation of the practice act or rules and regulations, the practice monitor shall immediately notify the Board, in writing, and include the basis for this conclusion. A copy will be sent to Respondent. Upon submission of such a report, Respondent shall immediately cease the practice of professional counseling.

21. Respondent shall make every effort to ensure that all reports by the practice monitor are complete and timely submitted to the Board. If, in the Board's judgment, the practice monitor fails to perform the function specified by this Order, the Board may require that a new practice monitor assume the responsibilities herein. If for any reason the practice monitor ceases to perform the functions specified in this Order, Respondent shall submit, in writing, a new proposed practice monitor to the Board within 30 days.

22. Respondent or the practice monitor may terminate the monitoring relationship upon written notice to the other and to the Board not less than 60 days before the date of termination. The notice shall state the reason for the termination. Respondent shall immediately initiate efforts to obtain another Board-approved practice monitor, who shall conduct her/his monitoring and report to the Board in accordance with this Order.

CONTINUING EDUCATION

23. During the term of probation, Respondent must successfully complete at least thirty (30) hours of Board-approved professional continuing education ("CE") courses in the areas of boundaries, dual relationships, and ethics. Respondent shall obtain Board approval of the courses prior to enrolling in each course. Upon completion of a course, Respondent shall ensure that a certificate of completion is provided to the Board.

TERMS AND CONDITIONS

24. Respondent will strictly observe the prohibitions set forth in §12-43-222, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with the generally accepted standards of practice.

25. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing psychotherapy, unless such supervision or consultation is monitored in accordance with this Order.
26. All expenses incurred or associated with the practice evaluation, practice monitoring, education, or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Board.
27. In the event Respondent relocates at any time during the probationary period, Respondent shall notify the Board of the change of address within 30 days of the effective date of such change.
28. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to §§12-43-212 and 24-4-104(9), C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.
29. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to a formal hearing on all matters herein.
30. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.
31. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board Order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal hearing pursuant to §§12-43-212, 12-43-224, and 24-4-104(9), C.R.S.
32. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.
33. Respondent shall obey all state and federal laws while this Order is in effect.
34. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.
35. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

36. This Order shall be admissible as evidence at any hearing held before the Board.

37. This Order shall be a public record in the custody of the Board.

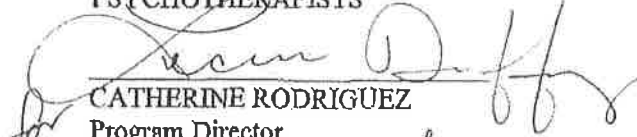
ACCEPTED AND AGREED BY:

RESPONDENT


LAUREN VAN DORN
RP NO. 11385

ACCEPTED AND ORDERED BY:

BOARD OF REGISTERED
PSYCHOTHERAPISTS


CATHERINE RODRIGUEZ
Program Director

Effective Date: This 12th day of

August, 2016.